



PLANNING COMMISSION
REGULAR MEETING
THURSDAY, MAY 14, 2026 - 9:30 AM

Location of Meeting: 333 West Colorado Ave., Second Floor Meeting Room, Telluride, CO 81435

Zoom Protocol

Invite link:

<https://us06web.zoom.us/j/81034857865?pwd=BxCK7QyaOIl8SIB1zJ9MckqF0pTJs7.1>

Meeting ID: 810 3485 7865

Passcode: 674724

If you wish to speak:

Via Computer:

Click **Raise Hand** in the webinar controls. The host will be notified that you've raised your hand.

- If the host allows you to talk, you may be prompted to unmute yourself. While unmuted, your profile picture and name are displayed to the host and panelists. Only your name is displayed to other attendees.
- Click **Raise Hand** in the webinar controls to lower it, if needed. This will not mute yourself if you are unmuted.

Windows: You can also use the **Alt+Y** keyboard shortcut to raise or lower your hand. **Mac:** You can also use the **Option+Y** keyboard shortcut to raise or lower your hand.

Telephone: If you join the webinar/meeting by phone, dial *9 to raise your hand.

- 1. 9:30 a.m. Call to Order**
- 2. Approval of Minutes, Planning Commission and Staff Comments**
 - a. March Minutes - -
- 3. Public Hearing: Land Use Application**
 - a. TABLED - - Garlock Special Use Permit for Social & Scenic Uses - -
- 4. Public Hearing: Land Use Application**
 - a. CANCELLED - - Crockett Special Use Permit for construction/contractor staging - -
- 5. Public Meeting: Land Use Application**
 - a. Lot 400-15, LHPUD Ilium Substantial PUD Amendment - -
- 6. Land Use Code Amendment Recommendation**

- a. Land Use Code Amendment: Adding "Footprint" to definition section of the Land Use Code and related amendments - -

7. Land Use Code Amendment Recommendation

- a. Land Use Code Amendment: Accelerated Housing Review - -

8. Work Session

- a. Draft Land Use Code Amendment: Natural Medicine - -

9. Adjournment

NOTE: All times are approximate; items may begin earlier (except public hearings) or later than scheduled. For more information contact Planning Department at (970) 369-5423.

If special accommodations are necessary per ADA, contact 970-728-3844, via email bocc@sanmiguelcountyco.gov prior to the meeting.

**SAN MIGUEL COUNTY PLANNING COMMISSION
DRAFT MINUTES
THURSDAY, MARCH 12, 2026
333 WEST COLORADO AVE., SECOND FLOOR MEETING ROOM, TELLURIDE, CO
81435**

1. 9:00 am Call to Order

Present:

Commissioner Lee Taylor
Commissioner Josselin Lifton-Zoline
Commissioner Mathew Bayma
Commissioner Hallie Bevan Simpson

Staff Present:

Kaye Simonson, Planning Director
John Huebner, Senior Planner
Nicola Kerr, Associate Planner
Kris Rauscher, Community Development Permit Technician
Jarrod Biggs, Deputy County Manager
Maura Boylan, County Attorney

2. Approval of Minutes, Planning Commission and Staff Comments

Kaye Simonson, Planning Director, updated the commission. The next meeting is a joint work session with the BOCC on March 26th to discuss the accelerated review for housing applications under Prop 123. The next Planning Commission meeting will be held on April 2nd starting with a site visit and convening in Norwood. The agenda will include a SUP and a work session on Natural Medicine. Changes have been made to the Planning website page on the San Miguel County website. Staff updated the commission on the Society Turn Parcel project and how the surrounding area will be affected. The Mill Creek PUD will be starting their infrastructure and site work this year.

a. February Minutes

Motion by Josselin Lifton-Zoline to approve the February 12th, 2026 minutes.

Seconded by Hallie Bevan Simpson. **PASSED 4-0.**

3. Briefing - Matt Gonzales Building Official

- a. Wildfire Code and Building Code Enforcement Update
Matt Gonzales, Building Official, gave a presentation on the Colorado Wildfire Resiliency Code, Building Code Adoption, and Building Code Enforcement. The Wildfire Resiliency Code is being adopted by the BOCC, due to it being a state law that introduces minimum requirements to help prevent the spread of wildfires and to

protect residences located in the Wild Land Urban Interface. Enforcement will be done in the West End Zone District to comply with the standards of this law. Clarification was provided on exemptions within the code. Compliance and enforcement apply if a permit is obtained after July 2026.

Motion by Josselin Lifton-Zoline to recommend the adoption of the Colorado Wildfire Resiliency Code by the San Miguel County Commissioners, pursuant to Senate Bill 23-I66 no later than April 1, 2026.

Seconded by Hallie Bevan Simpson. **PASSED 4-0.**

Matt Gonzales, Building Official, updated the commissioners on the consideration of adopting either the International Energy Conservation Code (IECC) or Low Energy & Carbon Code (LECC). A decision must be made and adopted by July 1st, 2026.

Matt Gonzales, Building Official, updated the commission on Code Enforcement and how the county currently enforces the code. The county uses SmartGov to receive complaints from members of the public and keep records of the progression of each case. The use of existing records, aerial views and GIS data, and in-person visits are all used as tools to gather information on each case of violation. A first, second, and final notice of violation is sent explaining what needs to be done in order to be in compliance. If someone refuses to address the notices of violations, the only option is to bring them to court before we can issue fines.

4. Adjournment

Adjourned at 11:38 a.m.

Respectfully submitted,

Approved:
PLANNING COMMISSION

ATTEST:

PUBLIC MEETING RECORD

County Planning Commission

Application: James Mahoney – Substantial PUD Amendment to increase allowable floor area, Lot 400-15, Lawson Hill PUD Ilium, 780 Vance Drive

Date: May 14, 2026

1. San Miguel County Land Use Code (Adopted 11/30/90) with all amendments to date (By Reference Only).
2. San Miguel County Comprehensive Development Plan (Adopted 8/3/78) with all amendments to date (By Reference Only).
3. Memorandum to the San Miguel County Planning Commission from John Huebner, Senior Planner dated May 14, 2026.
4. Application submitted by James Mahoney, James Mahoney P.C. on behalf of Toku Industries LLC dated April 7, 2026.
5. Applicant's Certification of Compliance with the public noticing requirements of the San Miguel County Land Use Code Section 3-9 dated April 23, 2026.
6. Planning Commission meeting agenda published in the Telluride Times on May 7, 2026.

AGENCY COMMENTS

7. Email and Memo from John Huebner, Senior Planner, to Review Agencies dated April 13, 2026.
8. Letter received from Sherri Reeder, Ilium Park Owners Association President to Toku Industries, Applicant, dated April 3, 2026.
9. Email received from Mike Bordogna, SMC Manager, to John Huebner, Senior Planner, dated April 22, 2026.

PUBLIC COMMENTS

None received at time of report

MEMORANDUM

TO: San Miguel County Board of Commissioners
FROM: John Huebner, AICP, Senior Planner
RE: Substantial PUD Amendment to increase allowable floor area
Lot 400-15, Lawson Hill PUD Ilium
DATE: May 14, 2026

Proposal

James Mahoney, Attorney, on behalf of Toku Industries LLC (Applicant), seeks a Substantial PUD Amendment to increase the maximum floor area allowed by up to 1,200 square feet from the existing 6,600 square feet up to 7,800 square feet for Lot 400-15, Lawson Hill PUD Ilium. Lot 400-15 is located at 780 Vance Drive units A, B and C in Ilium Valley off County Road 63L and is zoned Low Intensity Industrial (I). The lot is .47 acres, has no residential units assigned, no zoned population, with a maximum allowed floor area of 6,600 sq. ft., and 15 required parking spaces assigned per the Lawson Hill PUD Development Matrix (Matrix).

	Tract or Lot #	Area	Zone District	# of Units	Zoned Population	Max Flr Area	Required Parking
Existing	400-15	.468	I	0	0	6,600	15d
Proposed	400-15	.468	I	0	0	7,800	16d

Note d: No less than four parking spaces shall be provided no matter how little Floor Area is built. One car per 500 square feet of total developed Floor Area shall be provided. All required Parking shall be outdoors. The Ilium Valley Design Review Board may reduce the required parking on a case by case basis, but in no event shall the required parking be less than that required pursuant to County Land Use Code Section 5-702.

A single metal frame industrial building was constructed on Lot 400-15 in 2008. An auto service garage and tire shop leased the building until 2019. After the tenant vacated the building, the previous owner divided the building into three separately addressed units.

The current property owner plans to install a mezzanine level in Unit C, which is the east unit, for the desired use as a climbing gym. No other changes are proposed to Units A or B. The preliminary architectural sketch included in the application only shows an increase of 1,015 square feet, but when drawings are finalized, there could be up to 1,200 square feet added.

The mezzanine level proposed between the first floor and ceiling is common in gym spaces. It would allow for greater functionality of the facility. It will not increase the building's volume or footprint or intensity of use. The proposed climbing gym could function more safely and efficiently in the space.

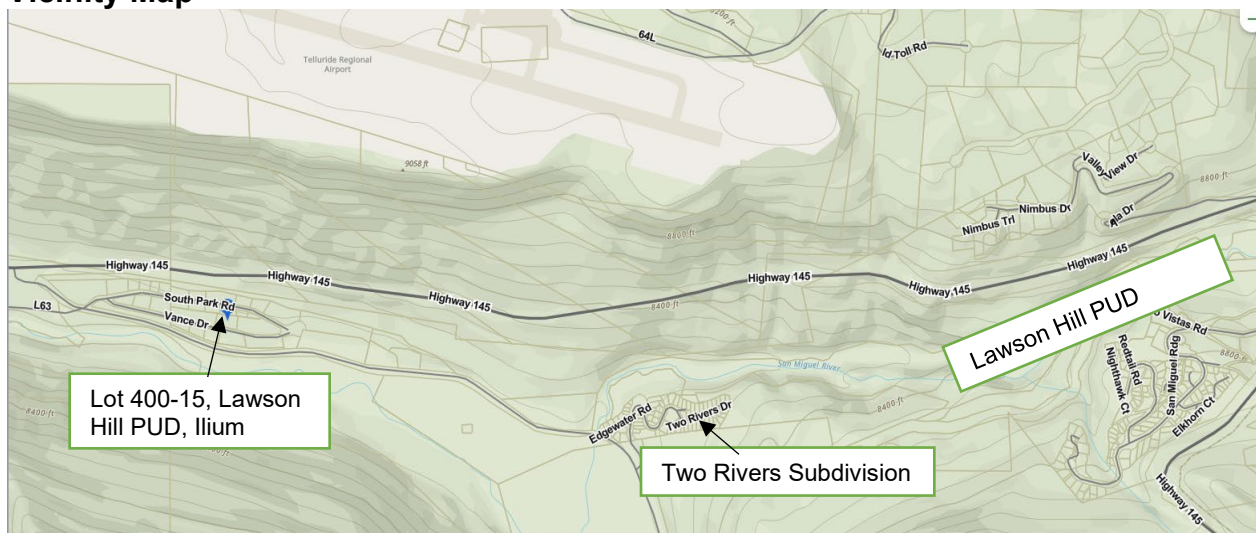
The property is served by Ilium Property Owners Association (IPOA) water and sewer. Additional tap fees would be required for a planned bathroom to serve the proposed climbing gym. The applicant does not expect there to be any impact on traffic demand due to the additional floor area. When the IPOA was recently approved for additional uses allowed in the Ilium Industrial Park, the traffic impacts for allowing uses like fitness

facilities were calculated and addressed with the recent PUD amendment. Per note d in the Matrix associated with parking, an additional parking space will be required ($7,800 / 500 = 15.6$ parking spaces). The enclosed parking survey shows that 17 total spaces can be accommodated on the site.

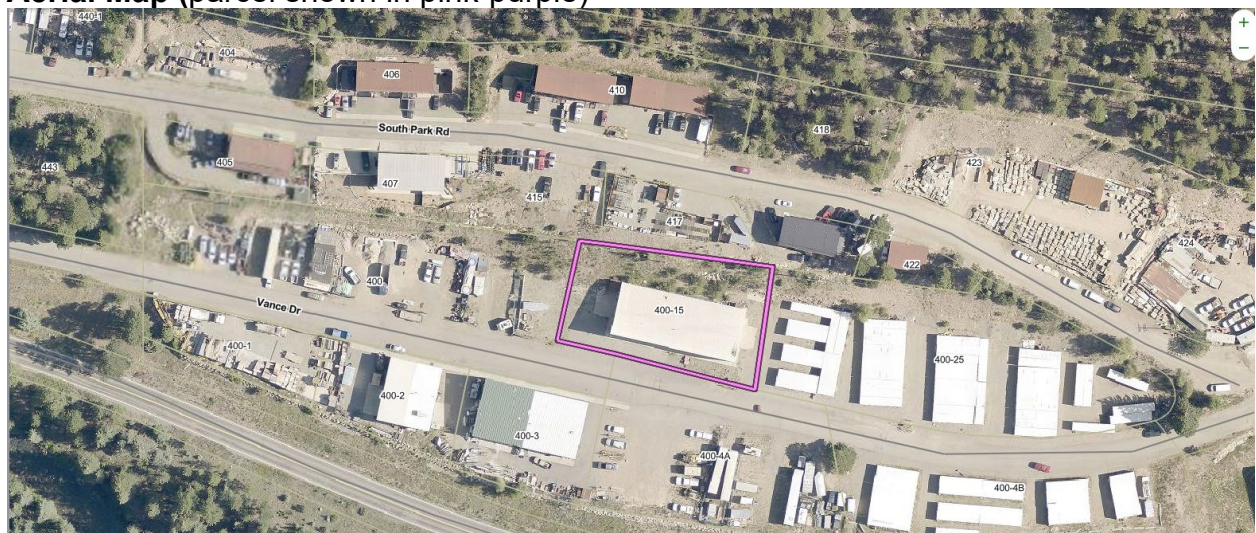
Since this lot is located in the Lawson Hill PUD, no additional employee housing would be required as a result of adding additional floor area.

Substantial PUD Amendments are specifically listed in LUC Section 5-1503 and Section 3-601 B as a development application Subject to Two-step Review, i.e. review and recommendation by the Planning Commission (CPC) and review and action by Board of County Commissioners (BOCC).

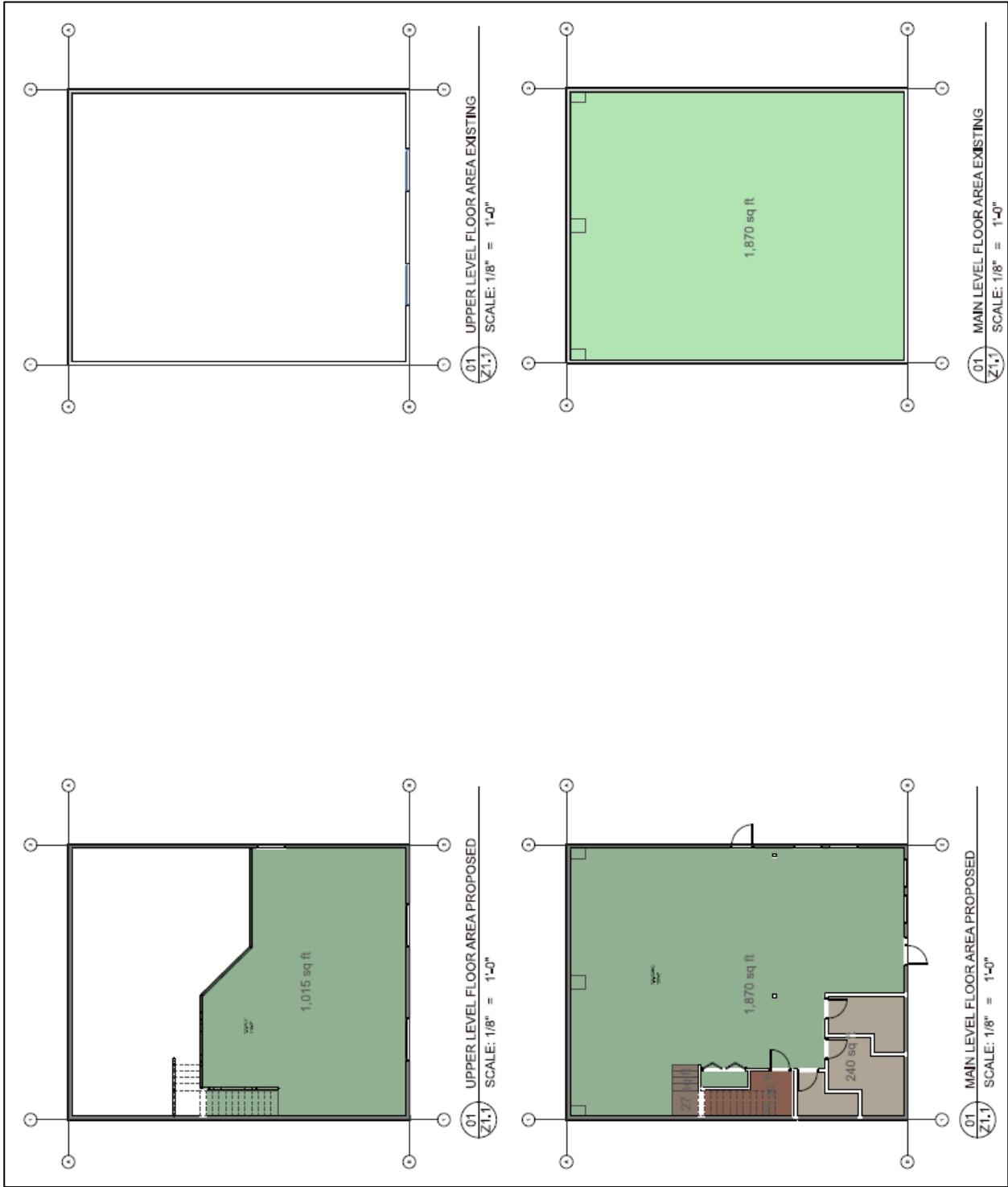
Vicinity Map



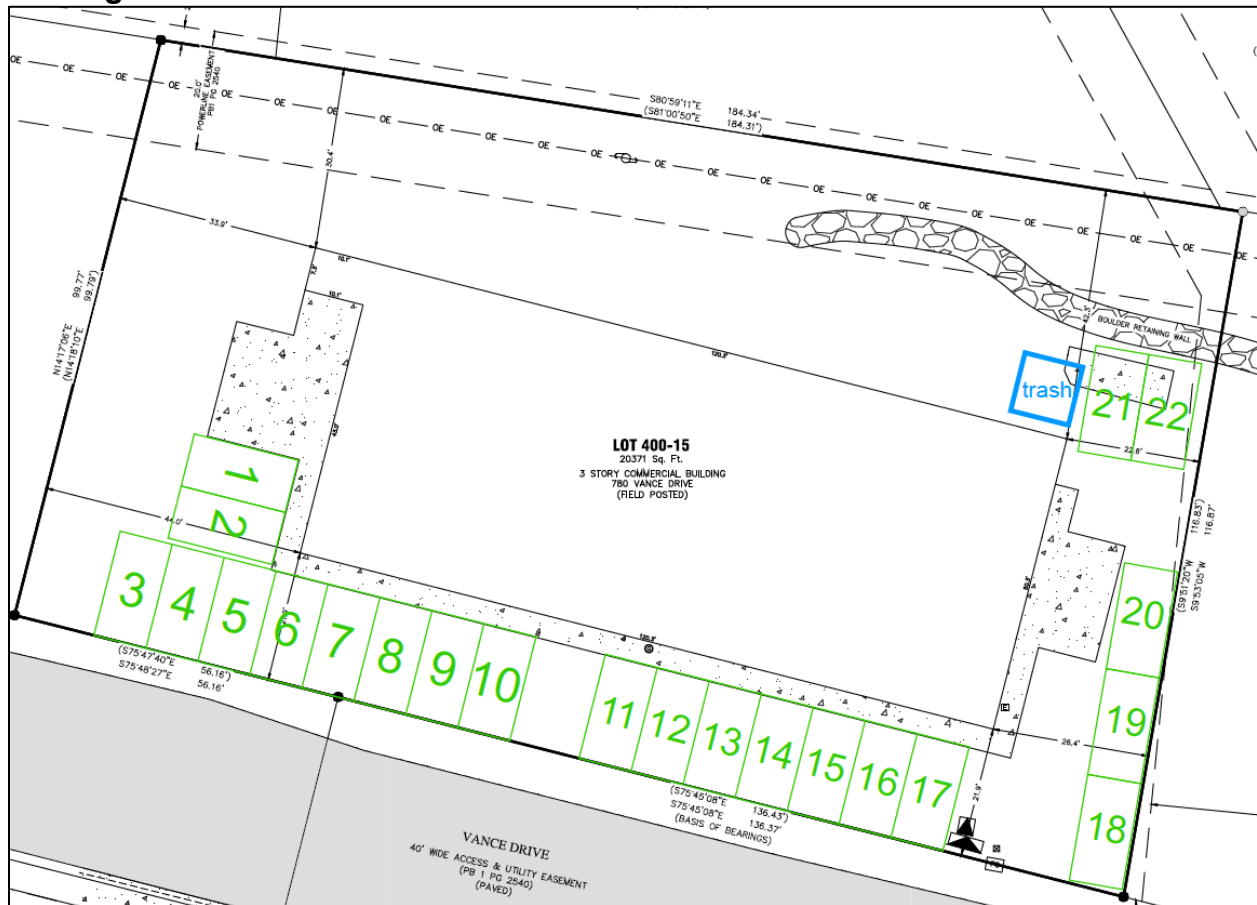
Aerial Map (parcel shown in pink-purple)



Floor Area



Parking Plan



Public Noticing

Public notice was provided to those property owners within 500 feet of property and a notice sign posting was also completed by the Applicant on April 23, 2026 for the Planning Commission meeting.

Referral Agencies

The application was referred to the County Attorney, County Manager, Deputy County Manager, County Building Official, Telluride Fire Protection District, San Miguel Regional Housing Authority, and the Ilium Property Owners Company (IPOA).

Referral Comments

Sherri Reeder, IPOA President, provided a letter in support of Lot 400-15's Substantial PUD Amendment application for mezzanine addition with conditions. The conditions regard parking plan, trash enclosure plan and tap fees payment.

Review Standards for a Substantial Plat & PUD Amendment

5-1501 General

This section of the Code establishes standards for insubstantial and substantial amendments to a final plat and PUD.

5-1503 Substantial Amendment

Any amendment that is not insubstantial according to the criteria in Section 5-1502 shall be approved pursuant to the procedures in Section 3-601, and the submission contents and standards of Section 4-5 for final plat review and the standards in this section (refer to section 3-702 C. for procedures and Section 4-5 for submission contents). The final plat shall state the purpose of the Amendment and whether the Amendment amends or supersedes in whole or in part the previously approved final plat.

- 5-1503 A. The proposed amendments must be consistent with the approved sketch plan subdivision approval, however in the absence of a valid sketch plan approval the amendment shall be compared to the preliminary plat;
- 5-1503 B. The proposed amendment must be necessary to achieve the intent and purposes of the Planned Unit Development (PUD); and
- 5-1503 C. The proposed amendment must be consistent with the standards of Section 5-1803.

5-1803 Rezoning

Rezoning may be initiated by the County or by persons who are residents of, or own property in, San Miguel County subject to compliance with the standards in this Section. Refer to Sections 3-6 and 4-6 for procedures and submission contents.

- 5-1803 A. The Planning Commission and the Board of County Commissioners shall approve or disapprove rezoning on the basis of whether the proposed rezoning:
 - I. Meets any applicable Sections of the Land Use Code;
 - II. Is consistent with the San Miguel County Comprehensive Development Plan;

The application is consistent with the County Comprehensive Development Plan and the County East End Master Plan. Specifically, the proposed rock climbing gym with expanded interior space in Space C provides for a diverse and resilient economic opportunity for the east region of the county. It will provide a recreational opportunity for locals and visitors that is not currently available in the private sector.

- III. Is compatible with surrounding Zone Districts and land uses, considering existing land, neighborhood characteristics, and community character, with the understanding that different densities and intensity of uses are not in and of themselves incompatible;

The proposed expansion is compatible with the existing land uses in the Ilium Industrial Business Park. No expansion of the building's footprint or changes to the exterior are contemplated with this request.

- IV. Would not result in unsupportable demands on public facilities, and would not exceed the capacity of such public facilities, including but not limited to transportation facilities, sewage facilities, water supply, parks, drainage, school and emergency medical facilities;

The property is already served by IPOA water and sewer and additional tap fees would be required for the additional fixtures for the bathroom which my client is prepared to obtain and pay for at the time of building permit.

- V. Would not result in significant adverse impacts on the natural environment;
- VI. Would not be in conflict with the public interest; and
- VII. Would help achieve the Land Use Policies, as set forth in Article 2 of this Land Use Code.

5-1803 B. The Planning Commission and the Board of County Commissioners shall also consider whether conditions affecting the subject parcel have changed or whether the surrounding neighborhood supports the proposed amendment.

5-1803 C. The Planning Commission and the Board of County Commissioners shall also consider the effect of the proposed amendment on traffic generation and road safety.

The proposed floor area expansion should not impact the condition within the neighborhood. The Ilium Property Owners Association has submitted a letter in support of the proposal.

Because the increase would be for this mezzanine level we do not believe there would be any additional impact on traffic or parking demand as the additional floor area does not increase the building's footprint or add a new full level to the structure. With fitness facilities as currently allowed usage the traffic impacts were already calculated and addressed with the recent PUD amendment allowing for such usage.

Sample Motion:

I move to recommend that the Board of County Commissioners approve the proposed Substantial PUD Amendment for up to a 1,200 increase in allowable floor area for Lot 400-15, Lawson Hill PUD Ilium as presented, finding that the proposed Substantial PUD Amendment application is in compliance with all applicable Land Use Code standards in Section 5-1503 Substantial Amendments and Section 5-1803 Rezoning.

1. All written representations of the applicant, in the original submittal and all supplements, are deemed to be conditions of approval except to the extent modified by this approval.

Narrative Lot 400-15, Lawson Hill PUD (Ilium Valley) PUD Amendment

Toku Industries, LLC, the “Owner” of Lot 400-15, is applying for (1) a Substantial PUD Amendment to increase the maximum floor area by 1100 to 1200 square feet from the existing 6,600 square feet to 7,700-7,800 square feet in the Lawson Hill PUD Matrix. Lot 400-15 is located at 780 Vance Drive units A, B and C.

The Owner would seek to amend the PUD by increasing the maximum floor area by 1,100 to 1,200 square feet from the existing 6,600 square feet to 7,700=7,800 square feet. The reasoning behind this request would be to allow for the addition of a mezzanine level to a portion of the interior of the existing structure to accommodate the desired use of the existing building as a climbing gym. This would all occur in Unit C of the property which is the ease unit and no changes to the other two spaces are proposed. I have included a sketch showing the new mezzanine level and that sketch only shows an increase of 1,015 square feet, however, the architect is finalizing measurements so this may change which is why the request is for the 1,100 to 1,200 square feet. This will be finalized by the time any hearings occur on this application.

Lot 400-15 is currently zoned industrial, has no residential units assigned to the property, no zoned population, 6,600 max floor area, a 35-foot height, 15 required parking spaces with uses as set forth in Matrix notes e, ee and ff. We also understand that Ilium Park Owners Association has submitted an application that would amend the uses allowed on Lot 400-15, one of which would be a fitness facility, and such amendment has been recently approved. The owner’s intended use is that of a climbing gym which fits within the allowed fitness facility use.

The additional floor area would be used to install a mezzanine level between the first floor and ceiling which is common in many gym spaces and allows for greater functionality of facilities; however, such additional floor area constructed as a mezzanine level would not increase the volume or intensity of use but simply allows the desired use to function more safely and efficiently. When users are allowed to spread out in a gym/climbing gym that is more desirable as crowding is not as safe to operate. Because the increase would be for this mezzanine level we do not believe there would be any additional impact on traffic or parking demand as the additional floor area does not increase the building’s footprint or add a new full level to the structure. With fitness facilities as currently allowed usage the traffic impacts were already calculated and addressed with the recent PUD amendment allowing for such usage.

The current parking requirement for the property is 15 spaces as set by the Matrix. The minimum requirements per the Matrix notes are one space per 500 square feet. This proposed increase in floor area would necessitate one additional space which can easily be accommodated on site to a total of 17 spaces. As you can see from the attached survey there is ample space for parking in front and side of the building where we have laid out over 20 possible parking spaces. We have also included the location of the trash which IPOA board requested to see when they consented to this application.

There will be a restroom(s) on site with the climbing gym which would see use when the climbing gym is open. The property is already served by IPOA water and sewer and additional tap fees would be required for the additional fixtures for the bathroom which my client is prepared to obtain and pay for at the time of building permit. This was discussed by IPOA when they consented to this application.

Because this addition is less than 2,250 square feet no employee housing mitigation is required as this not a **new** office restaurant or retail development and the addition is less than 2,250 square feet per LUC 5-1203A. The addition of this floor area will not generate additional employees as the additional floor area

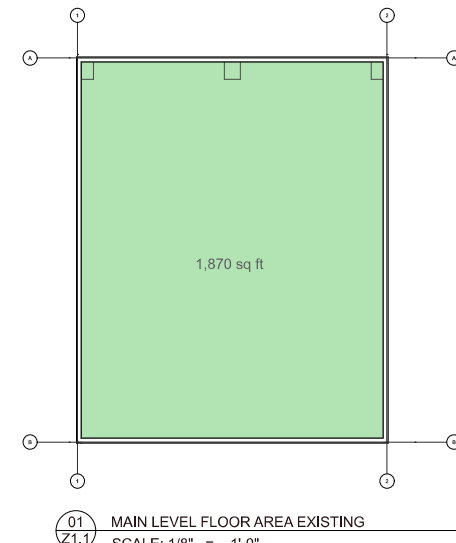
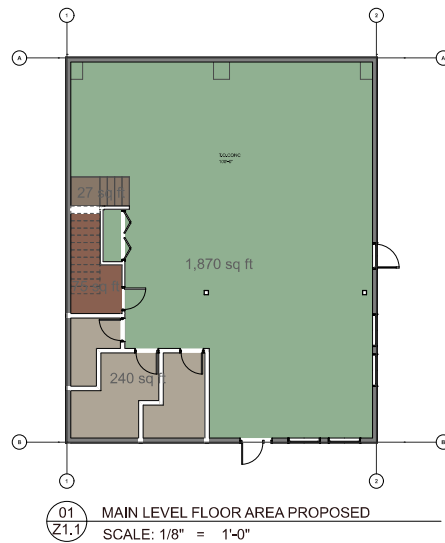
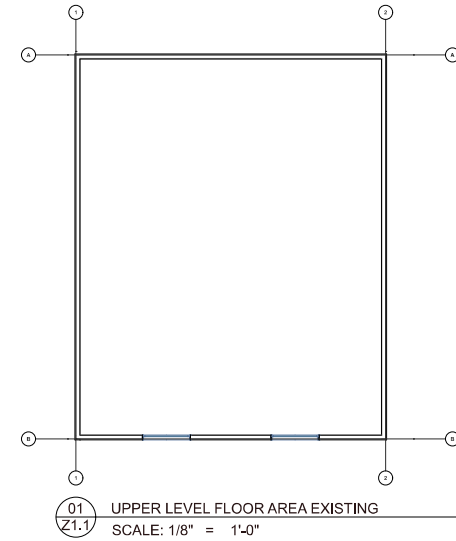
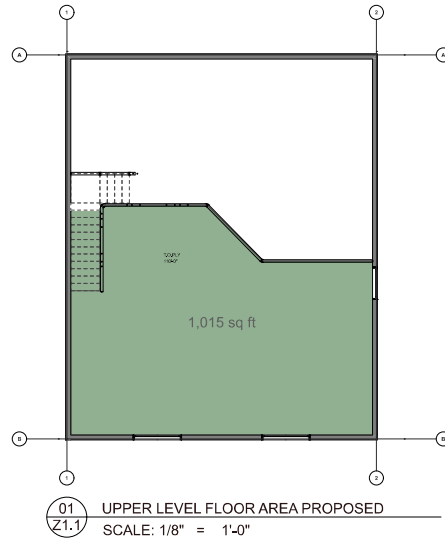
provides for better functionality of a climbing gym that will have the same employee levels with or without the additional floor area for the mezzanine level.

Finally, the additional floor area is consistent with the subdivision and PUD approvals in place and the request for additional floor area is actually less than what is allowed on industrial lots pursuant to the LUC. Under the LUC's max floor area allowances Lot 400-15 with its acreage would be allowed a floor area of 10,190 based on a .5/1 floor area to lot size, so this request is still less than what is allowable pursuant to LUC maximums.

Therefore, we believe this application also meets the criteria set forth in Land Use Code Section 15-5 (5-1503A-C).

The Submission Requirements are addressed below:

1. HOA Approval Letter including will serve confirmation for water and sewer – attached (pending approval).
2. Agency Letter (4-202) – attached.
3. Vicinity Map (4-203) – attached.
4. Mezzanine level sketch – attached.
5. Parking and trash sketch - attached
6. Deed and Title Commitment (4-204) – attached.
7. Legal Access – the Property is served by Vance Drive as shown on the Vicinity Map
8. Standards Report (4-206) – this narrative serves as the standards report.
9. Pre Application Letter (4-207) – attached.
10. Site Plan (4-208) – see attached mezzanine sketch and parking/trash sketch.
 - a. No changes to the site other than interior changes are requested or contemplated.
11. Copies of Application (4-209) – submitted electronically.
12. Revegetation Plan (4-210) – not applicable.
13. Weed Control Plant (4-211) – not applicable.
14. Employee Housing Mitigation Plan – N/A addressed in narrative.

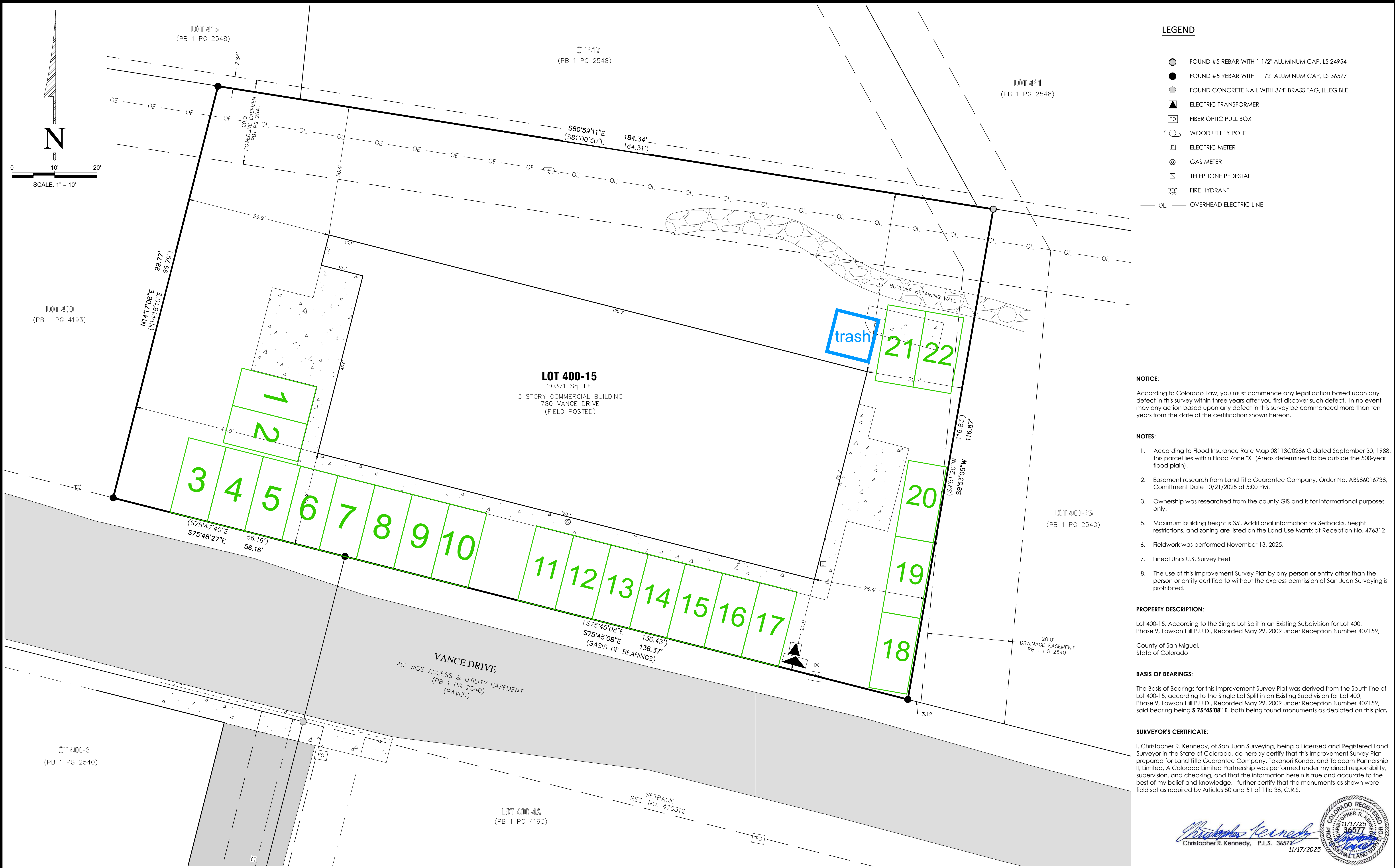


SHEET TITLE

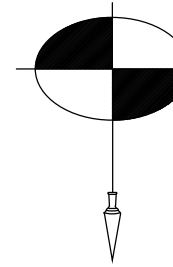
FLOOR AREA

SHEET NUMBER

Z1.1



IMPROVEMENT SURVEY PLAT
LOT 400-15, PHASE 9, LAWSON HILL P.U.D.



SAN JUAN SURVEYING
SURVEYING * PLANNING
102 SOCIETY DRIVE TELLURIDE, CO. 81435
(970) 728 - 1128 (970) 728 - 9201 fax
office@sanjuansurveying.net

DATE:	11/17/2025
JOB:	08011
DRAWN BY:	AHM
CHECKED BY:	CRK
REVISION DATES:	
SHEET:	1 OF 1



Highway 145

Highway 145

Highway 145

Highway 145

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Vance Dr

400-1

400-2

400-3

400-15

400-25

400-4A

400-4B

425-4

S



PLANNING DEPARTMENT

KAYE SIMONSON, PLANNING DIRECTOR

January 27, 2026

Jim Mahoney Via email: jmahoney@telluriderlaw.com

Re: Pre-application Conference Summary: Substantial PUD Amendment, Lot 400-15, Lawson Hill PUD (Ilium Valley)

Dear Jim:

The purpose of this correspondence is to serve as a summary of a Pre-application Conference, in accordance with Section 4-207 of the San Miguel County Land Use Code, for a proposed Substantial PUD Amendment for Lot 400-15, located in the Ilium Industrial Park, to add 1,000 square feet to the maximum floor area for a mezzanine.

Issues related to water and sewer usage, parking, and traffic impacts need to be addressed by this application. A written confirmation that water and sewer services would be provided by the IPOA is required. A traffic report identifying any impacts on trip generation may be needed. IPOA authorization for the amendment to the PUD is needed to apply. The PUD amendment must show that parking requirements can be met.

The Allowed Use for the units, assigned residential unit(s), zoned population, maximum Floor Area, parking and area & bulk requirements for each lot/tract are identified within the Lawson Hill Development Plan Matrix (Matrix). A new Matrix page showing the proposed changes will need to be submitted with the application.

Substantial PUD Amendment applications require Two-step Planning Commission and Board of Commissioner review pursuant to Land Use Code Sections 3-601 A. & B., 4-5, 5-1503 and 5-1803.

Submission Requirements

*See Attached **Submission Requirements***

Review Standards

*See Attached **Review Standards***

Scheduling of Application Consideration

Please a complete set of electronic files to SmartGov <https://co-sanmiguel-co.smartgovcommunity.com/Public/Home> of the complete application that conforms to all applicable Land Use Code requirements. The Planning Department can then schedule the Substantial Plat Amendment for consideration by the Planning Commission and subsequently by the Board of County Commissioners.

The Planning Department will refer the application to the County Attorney, County Manager, County Deputy Manager, County Building Official, and the Ilium Park Owners Association. Other referrals will be determined upon receipt of the application.

Payment of \$1,210 to San Miguel County must accompany the application for it to be considered complete (in accordance with Board of County Commissioners Resolution 2023-02). The applicant is responsible for reimbursement of any County Designated Engineer review fees, which includes the initial review and any revisions.

Prior to 20 days before any meeting for which consideration of any land use application is scheduled, the applicant shall **notify by First Class mail** every property owner and condominium unit owner within one-half (1/2) mile of any portion of the boundary of the subject property and owners of each parcel of real property adjacent to or through the designated Access Road extending from the nearest public road, as listed in the records of the San Miguel County Assessor. In addition, prior to 20 days before any meeting for which consideration of any land use application is scheduled, the applicant **shall post notice** (*letter and sign to be obtained from the Planning Department*) of the scheduled consideration of the application. Mailing and posting of notice by an applicant prior to a meeting that is not a public hearing shall be carried out pursuant to Section 3-903 A., B. and C. In addition to the general notice provisions of Section 3-9, the San Miguel County Land Use Code may require additional notice for certain property owners and parties outside the 500 foot perimeter of the subject property for certain specific development applications, as set forth in the Land Use Code. An applicant's failure/refusal to submit the required certification of notice required by C.R.S. §§24-65.5-103(4) and 104(2), will result in the public meeting or hearing being rescheduled to a later date.

This pre-application letter is valid for one year from date of letter. Please contact the Planning Department if you have questions.

Sincerely,



John Huebner, Senior Planner

SUBMISSION REQUIREMENTS**SECTION 4-2: MINIMUM SUBMISSION CONTENTS FOR ALL LAND USE APPLICATIONS****4-201 General**

All applications for land use approvals shall include, at a minimum, the information and materials specified in this section of the Code. During the pre-application conference the Planning Office staff may authorize modifications to the required submission contents.

4-202 Required Background Information

A letter signed by the property owner containing the property owner's name, the applicant's name, address and telephone number, and if applicable, the name, address and telephone number of the representative authorized to act on behalf of the property owner.

4-203 Parcel Description

The street address and current legal description of the parcel on which the development is proposed to occur and an 8-1/2" x 11" vicinity map locating the subject property within San Miguel County.

4-204 Disclosure and Proof of Ownership

A disclosure of ownership of the parcel on which the development is proposed to occur, consisting of a current certificate from a title insurance company or attorney licensed to practice law in the State of Colorado, listing the names of all owners of the property and all holders of subsurface mineral interests of record listed in the real estate records of the San Miguel County Clerk and Recorder, mortgages, judgments, liens, easements, contracts and agreements affecting use and development of the parcel and proof of the owner's right to use the land for the purposes identified in the development application. This shall normally require proof of complete ownership or written consent from all owners. The staff may also request the applicant to supply information regarding the subject property and contiguous property sufficient to indicate that the subject lot was legally created.

4-205 Legal Access

Sufficient information to demonstrate that the applicant has adequate legal access to the parcel for the development proposal.

4-206 Standards Report

A written report demonstrating that the proposed development complies with the applicable substantive review standards.

4-207 Pre-Application Conference Summary Sheet

A copy of the pre-application conference summary sheet provided to the applicant at the pre-

application conference.

4-208 Site Plan

A site utilization map shall be submitted. Where applicable, a preliminary or final plat shall also be submitted. During the pre-application conference, the Planning Office may authorize an applicant to consolidate or delete specific maps that may not be applicable to a particular development proposal. The 24" x 36" site utilization maps must be folded to fit within a legal-size folder with the name of the application visible. Site maps shall include identification of Areas of Local and State Interest as set forth in Section 5-4 and Wetland Areas as set forth in Section 5-22, for all areas where development activity is proposed.

4-209 Copies of Application

During the pre-application conference the staff shall specify the number of copies of the application to be submitted, including the number of copies of 24" by 36" maps or plats, if applicable. The Planning Office may authorize the submission of application materials, including maps and plats, in electronic format in lieu of paper copies.

4-210 Revegetation Plan

A plan for revegetation of all surfaces disturbed in conjunction with Development that employs predominantly native species, includes replacement of topsoil and specifies a maintenance schedule and techniques.

4-211 Weed Control Plan

A plan for control of noxious weeds, as listed in the San Miguel County Weed Identification List, for all surfaces disturbed in conjunction with Development. Disturbed surfaces over one (1) cumulative acre in size will require bonding for revegetation and weed control.

4-212 Employee Housing Mitigation Plan

A plan that complies with Section 5-13 of this Code to provide appropriate employee housing mitigation for the proposed development in the R-1 School District, if applicable.

Review Standards for a Substantial Plat & PUD Amendment**5-1501 General**

This section of the Code establishes standards for insubstantial and substantial amendments to a final plat and PUD.

5-1503 Substantial Amendment

Any amendment that is not insubstantial according to the criteria in Section 5-1502 shall be approved pursuant to the procedures in Section 3-601, and the submission contents and standards of Section 4-5 for final plat review and the standards in this section (refer to section 3-702 C. for procedures and Section 4-5 for submission contents). The final plat shall state the purpose of the Amendment and whether the Amendment amends or supersedes in whole or in part the previously approved final plat.

- 5-1503 A. The proposed amendments must be consistent with the approved sketch plan subdivision approval, however in the absence of a valid sketch plan approval the amendment shall be compared to the preliminary plat;
- 5-1503 B. The proposed amendment must be necessary to achieve the intent and purposes of the Planned Unit Development (PUD); and
- 5-1503 C. The proposed amendment must be consistent with the standards of Section 5-1803.

5-1803 Rezoning

Rezoning may be initiated by the County or by persons who are residents of, or own property in, San Miguel County subject to compliance with the standards in this Section. Refer to Sections 3-6 and 4-6 for procedures and submission contents.

- 5-1803 A. The Planning Commission and the Board of County Commissioners shall approve or disapprove rezoning on the basis of whether the proposed rezoning:
 - I. Meets any applicable Sections of the Land Use Code;
 - II. Is consistent with the San Miguel County Comprehensive Development Plan;
 - III. Is compatible with surrounding Zone Districts and land uses, considering existing land, neighborhood characteristics, and community character, with the understanding that different densities and intensity of uses are not in and of themselves incompatible;
 - IV. Would not result in unsupportable demands on public facilities, and would not exceed the capacity of such public facilities, including but not limited to transportation facilities, sewage facilities, water supply, parks, drainage, school and emergency medical facilities;
 - V. Would not result in significant adverse impacts on the natural environment;

VI. Would not be in conflict with the public interest; and

VII. Would help achieve the Land Use Policies, as set forth in Article 2 of this Land Use Code.

5-1803 B. The Planning Commission and the Board of County Commissioners shall also consider whether conditions affecting the subject parcel have changed or whether the surrounding neighborhood supports the proposed amendment.

5-1803 C. The Planning Commission and the Board of County Commissioners shall also consider the effect of the proposed amendment on traffic generation and road safety.

AGENCY LETTER

Toku Industries, LLC, a Colorado limited liability company, as the Owner of 780 Vance Drive, Telluride, CO (the “**Property**”) hereby appoint and authorize James Mahoney P.C. as our agent to file and pursue an application for a substantial PUD amendment to increase the maximum floor area allowed on the Property to San Miguel County.

Made this 3rd day of March, 2026:

Toku Industries, LLC, a Colorado limited liability company:



Takanori Kondo, Manager



Customer Distribution



Prevent fraud - Please call a member of our closing team for wire transfer instructions or to initiate a wire transfer. Note that our wiring instructions will never change.

Order Number: **ABS86016738-5**

Date: **02/03/2026**

Property Address: **780 VANCE DRIVE, TELLURIDE, CO 81435**

For Closing Assistance

Robin Watkinson
PO BOX 277
TELLURIDE, CO 81435
191 SOUTH PINE STREET,
SUITE 1C
(970) 728-1023 (Work)
(877) 348-5414 (Work Fax)
rwatkinson@ltgc.com
Contact License: CO338561
Company License: CO44565

Closing Associate

Gaylene Anderson
PO BOX 277
TELLURIDE, CO 81435
191 SOUTH PINE STREET,
SUITE 1C
(970) 728-1023 (Work)
(877) 348-5414 (Work Fax)
ganderson@ltgc.com
Contact License: CO380183
Company License: CO44565

Closing Processor

Ethan Butler
PO BOX 277
TELLURIDE, CO 81435
191 SOUTH PINE STREET,
SUITE 1C
(970) 728-1023 (Work)
ebutler@ltgc.com
Company License: CO44565

For Title Assistance

George Rietsch
5975 GREENWOOD PLAZA
BLVD
GREENWOOD VILLAGE, CO
80111
(303) 850-4151 (Work)
grietsch@ltgc.com
Company License: CO44565

HOA Assistant

Jennifer Ogilvie
PO BOX 277
TELLURIDE, CO 81435
191 SOUTH PINE STREET,
SUITE 1C
(970) 519-7015 (Work)
(877) 348-5414 (Inc. Fax)
jogilvie@ltgc.com
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HOA Assistant

Jodi Repola
PO BOX 277
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191 SOUTH PINE STREET,
SUITE 1C
(970) 728-1023 (Work)
(877) 348-5414 (Inc. Fax)
jrepola@ltgc.com
Company License: CO44565

Buyer/Borrower

TOKU INDUSTRIES, LLC
Attention: TAKANORI KONDO
PO BOX 91
PLACERVILLE, CO 81430
(508) 446-5496 (Cell)
tkondo194@gmail.com
Delivered via: Electronic Mail

Agent for Seller

TELLURIDE REAL ESTATE BROKERS INC
Attention: RYAN KUSUNO
PO BOX 832
126 W COLORADO AVE #100
TELLURIDE, CO 81435
(303) 884-7605 (Cell)
(970) 728-6667 (Work)
(970) 728-9103 (Work Fax)
ryan.kusuno@hotmail.com
Delivered via: Electronic Mail

Seller/Owner

TELECAMP PARTNERSHIP II, LIMITED, A
COLORADO LIMITED PARTNERSHIP
Attention: CAMERON JONES
PO BOX 3231
TELLURIDE, CO 81435
(970) 728-4445 (Cell)
cameron@telecampartners.com
Delivered via: Electronic Mail

Agent for Buyer

LIV SOTHEBY'S INTERNATIONAL REALTY
Attention: DAN DOCKRAY
137 W COLORADO AVE
TELLURIDE, CO 81435
(970) 708-0666 (Cell)
dan.dockray@sothebysrealty.com
Delivered via: Electronic Mail

Buyers Closing Coordinator

LIV SOTHEBY'S INTERNATIONAL REALTY
Attention: DANIEL FORGRAVE
137 W COLORADO AVE
TELLURIDE, CO 81435
(970) 708-4575 (Cell)
daniel.forgrave@gmail.com
Delivered via: Electronic Mail

Lender - New Loan

COMMUNITY BANKS OF COLORADO, A DIVISION
OF NBH BANK
Attention: TRICIA MAXON, SARAH RYAN
1111 MAIN STREET, SUITE 2700
Kansas City, MO 64105
(970) 392-5822 (Work)
tricia.maxon@nbhbank.com
sryan@nbhbank.com
Delivered via: Electronic Mail

Attorney for Buyer

JAMES MAHONEY
PO BOX 1902
TELLURIDE, CO 81435
(970) 708-5070 (Work)
jmahoney@telluriderlaw.com
Delivered via: Electronic Mail



Estimate of Title Fees

Order Number: ABS86016738-5

Date: 02/03/2026

Property Address: 780 VANCE DRIVE, TELLURIDE, CO 81435

Seller(s): TELECAM PARTNERSHIP II, LIMITED, A COLORADO LIMITED PARTNERSHIP

Buyer(s): TOKU INDUSTRIES, LLC, A COLORADO LIMITED LIABILITY COMPANY

Thank you for putting your trust in Land Title. Below is the estimate of title fees for the transaction. The final fees will be collected at closing. Visit ltgc.com to learn more about Land Title.

Estimate of Title Insurance Fees	
"ALTA" Owner's Policy 07-01-21	\$5,922.00
Deletion of Standard Exception(s)	\$100.00
"ALTA" Loan Policy 07-01-21 Purchase Loan Rate	\$300.00
Deletion of Standard Exception(s)	\$100.00
Endorsement ALTA 9	\$467.00
Endorsement ALTA 14	\$100.00
Tax Certificate	\$27.00
TOTAL	\$7,016.00

Note: The documents linked in this commitment should be reviewed carefully. These documents, such as covenants conditions and restrictions, may affect the title, ownership and use of the property. You may wish to engage legal assistance in order to fully understand and be aware of the implications of the documents on your property.

Chain of Title Documents:

[San Miguel county recorded 10/26/1998 under reception no. 321999](#)

[San Miguel county recorded 02/15/1991 under reception no. 269597 at book 475 page 130](#)

[San Miguel county recorded 06/22/1990 under reception no. 265827 at book 467 page 121](#)

[San Miguel county recorded 06/22/1990 under reception no. 265826 at book 467 page 116](#)

[San Miguel county recorded 06/22/1990 under reception no. 265825 at book 467 page 111](#)

Plat Map(s):

[San Miguel county recorded 05/29/2009 under reception no. 407159](#)

ALTA COMMITMENT
Old Republic National Title Insurance Company
Schedule A

Order Number: ABS86016738-5

Customer Ref-Loan No.: 2017314586

Property Address:

780 VANCE DRIVE, TELLURIDE, CO 81435

1. Commitment Date:

01/26/2026 at 5:00 P.M.

2. Policy to be Issued and Proposed Insured:

"ALTA" Owner's Policy 07-01-21 \$2,495,000.00

Proposed Insured:
TOKU INDUSTRIES, LLC, A COLORADO LIMITED LIABILITY
COMPANY

"ALTA" Loan Policy 07-01-21 Purchase Loan Rate \$1,871,250.00

Proposed Insured:
COMMUNITY BANKS OF COLORADO, A DIVISION OF NBH
BANK, ITS SUCCESSORS AND/OR ASSIGNS

3. The estate or interest in the land described or referred to in this Commitment and covered herein is:

FEE SIMPLE

4. The Title is, at the Commitment Date, vested in:

TELECAM PARTNERSHIP II, LIMITED, A COLORADO LIMITED PARTNERSHIP

5. The Land is described as follows:

LOT 400-15
SINGLE LOT SPLIT IN AN EXISTING SUBDIVISION FOR LOT 400,
PHASE 9,
LAWSON HILL P.U.D.,
RECORDED MAY 29, 2009 UNDER RECEPTION NO. [407159](#),
COUNTY OF SAN MIGUEL, STATE OF COLORADO.

This page is only a part of a 2021 ALTA® Commitment for Title Insurance. This Commitment is not valid without the Notice; the Commitment to Issue Policy; the Commitment Conditions; Schedule A; Schedule B, Part I—Requirements; Schedule B, Part II—Exceptions; and a counter-signature by the Company or its issuing agent that may be in electronic form.



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ALTA COMMITMENT

Old Republic National Title Insurance Company

Schedule B, Part I

(Requirements)

Order Number: ABS86016738-5

All of the following Requirements must be met:

This proposed Insured must notify the Company in writing of the name of any party not referred to in this Commitment who will obtain an interest in the Land or who will make a loan on the Land. The Company may then make additional Requirements or Exceptions.

Pay the agreed amount for the estate or interest to be insured.

Pay the premiums, fees, and charges for the Policy to the Company.

Documents satisfactory to the Company that convey the Title or create the Mortgage to be insured, or both, must be properly authorized, executed, delivered, and recorded in the Public Records.

1. (THIS ITEM WAS INTENTIONALLY DELETED)
2. WARRANTY DEED FROM TELECAM PARTNERSHIP II, LIMITED, A COLORADO LIMITED PARTNERSHIP TO TOKU INDUSTRIES, LLC, A COLORADO LIMITED LIABILITY COMPANY CONVEYING SUBJECT PROPERTY.
(THIS ITEM WAS INTENTIONALLY DELETED)

NOTE: THE STATEMENT OF AUTHORITY FOR TELECAM PARTNERSHIP II, LIMITED, A COLORADO LIMITED PARTNERSHIP RECORDED NOVEMBER 10, 2021, AS RECEPTION NO. [473597](#) AND THE SECOND AMENDED AND RESTATED CERTIFICATE AND AGREEMENT OF LIMITED PARTNERSHIP DISCLOSES CAMERON JONES, PRESIDENT, MACELET, INC., A COLORADO CORPORATION, AS THE GENERAL PARTNER AUTHORIZED TO EXECUTE LEGAL INSTRUMENTS ON BEHALF OF SAID ENTITY.

3. EVIDENCE SATISFACTORY TO THE COMPANY THAT THE TERMS, CONDITIONS AND PROVISIONS OF THE ILIUM PARK OWNERS ASSOCIATION REAL ESTATE TRANSFER ASSESSMENT HAVE BEEN SATISFIED.
4. DEED OF TRUST FROM TOKU INDUSTRIES, LLC, A COLORADO LIMITED LIABILITY COMPANY TO THE PUBLIC TRUSTEE OF SAN MIGUEL COUNTY FOR THE USE OF COMMUNITY BANKS OF COLORADO, A DIVISION OF NBH BANK TO SECURE THE SUM OF \$1,871,250.00.
5. DULY EXECUTED AND ACKNOWLEDGED STATEMENT OF AUTHORITY SETTING FORTH THE NAME OF TOKU INDUSTRIES, LLC, A COLORADO LIMITED LIABILITY COMPANY AS A COLORADO LIMITED LIABILITY COMPANY. THE STATEMENT OF AUTHORITY MUST STATE UNDER WHICH LAWS THE ENTITY WAS CREATED, THE MAILING ADDRESS OF THE ENTITY, AND THE NAME AND POSITION OF THE PERSON(S) AUTHORIZED TO EXECUTE INSTRUMENTS CONVEYING, ENCUMBERING, OR OTHERWISE AFFECTING TITLE TO REAL PROPERTY ON BEHALF OF THE ENTITY AND OTHERWISE COMPLYING WITH THE PROVISIONS OF SECTION 38-30-172, CRS.

NOTE: THE STATEMENT OF AUTHORITY MUST BE RECORDED WITH THE CLERK AND RECORDER.

NOTE: THE OPERATING AGREEMENT FOR TOKU INDUSTRIES, LLC, A COLORADO LIMITED LIABILITY COMPANY DISCLOSES TAKANORI KONDO AS THE MANAGER AUTHORIZED TO EXECUTE LEGAL INSTRUMENTS ON BEHALF OF SAID ENTITY.

ALTA COMMITMENT
Old Republic National Title Insurance Company
Schedule B, Part I
(Requirements)

Order Number: ABS86016738-5

All of the following Requirements must be met:

REQUIREMENTS TO DELETE THE PRE-PRINTED EXCEPTIONS IN THE OWNER'S POLICY TO BE ISSUED

A. ITEMS 1-3 OF THE PRE-PRINTED EXCEPTIONS WILL BE DELETED.

B. UPON THE APPROVAL OF THE COMPANY AND THE RECEIPT OF A NOTARIZED FINAL LIEN AFFIDAVIT, ITEM 4 OF THE PRE-PRINTED EXCEPTIONS, WILL BE AMENDED TO READ:

ITEM 4 OF THE PRE-PRINTED EXCEPTIONS IS DELETED AS TO ANY LIENS OR FUTURE LIENS RESULTING FROM WORK OR MATERIAL FURNISHED AT THE SPECIFIC, DIRECT REQUEST, AND WITH THE ACTUAL KNOWLEDGE OF TELECAM PARTNERSHIP II, LIMITED, A COLORADO LIMITED PARTNERSHIP.

OLD REPUBLIC NATIONAL TITLE INSURANCE COMPANY SHALL HAVE NO LIABILITY FOR ANY LIENS ARISING FROM WORK OR MATERIAL FURNISHED AT THE SPECIFIC, DIRECT REQUEST, AND WITH THE ACTUAL KNOWLEDGE OF TOKU INDUSTRIES, LLC, A COLORADO LIMITED LIABILITY COMPANY.

C. ITEM 5 OF THE PRE-PRINTED EXCEPTIONS WILL BE DELETED IF LAND TITLE GUARANTEE COMPANY CONDUCTS THE CLOSING OF THE CONTEMPLATED TRANSACTION(S) AND RECORDS THE DOCUMENTS IN CONNECTION THEREWITH.

D. UPON PROOF OF PAYMENT OF 2025 TAXES AND ASSESSMENTS, ITEM 6 OF THE PRE-PRINTED EXCEPTIONS WILL BE AMENDED TO READ:

TAXES AND ASSESSMENTS FOR THE YEAR 2026 AND SUBSEQUENT YEARS.

REQUIREMENTS TO DELETE THE PRE-PRINTED EXCEPTIONS IN THE MORTGAGEE'S POLICY TO BE ISSUED

A. ITEMS 1-3 OF THE PRE-PRINTED EXCEPTIONS WILL BE DELETED.

B. UPON THE APPROVAL OF THE COMPANY AND THE RECEIPT OF A NOTARIZED FINAL LIEN AFFIDAVIT, ITEM 4 OF THE PRE-PRINTED EXCEPTIONS, WILL BE DELETED.

C. ITEM 5 OF THE PRE-PRINTED EXCEPTIONS WILL BE DELETED IF LAND TITLE GUARANTEE COMPANY CONDUCTS THE CLOSING OF THE CONTEMPLATED TRANSACTION(S) AND RECORDS THE DOCUMENTS IN CONNECTION THEREWITH.

D. UPON PROOF OF PAYMENT OF 2025 TAXES AND ASSESSMENTS, ITEM 6 OF THE PRE-PRINTED EXCEPTIONS WILL BE AMENDED TO READ:

TAXES AND ASSESSMENTS FOR THE YEAR 2026 AND SUBSEQUENT YEARS.

ALTA COMMITMENT
Old Republic National Title Insurance Company
Schedule B, Part II
(Exceptions)

Order Number: ABS86016738-5

Some historical land records contain Discriminatory Covenants that are illegal and unenforceable by law. This Commitment and the Policy treat any Discriminatory Covenant in a document referenced in Schedule B as if each Discriminatory Covenant is redacted, repudiated, removed, and not republished or recirculated. Only the remaining provisions of the document will be excepted from coverage.

1. Any facts, rights, interests, or claims thereof, not shown by the Public Records but that could be ascertained by an inspection of the Land or that may be asserted by persons in possession of the Land.
2. Easements, liens or encumbrances, or claims thereof, not shown by the Public Records.
3. Any encroachment, encumbrance, violation, variation, or adverse circumstance affecting the Title that would be disclosed by an accurate and complete land survey of the Land and not shown by the Public Records.
4. Any lien, or right to a lien, for services, labor or material heretofore or hereafter furnished, imposed by law and not shown by the Public Records.
5. Defects, liens, encumbrances, adverse claims or other matters, if any, created, first appearing in the public records or attaching subsequent to the effective date hereof but prior to the date of the proposed insured acquires of record for value the estate or interest or mortgage thereon covered by this Commitment.
6. (a) Taxes or assessments that are not shown as existing liens by the records of any taxing authority that levies taxes or assessments on real property or by the Public Records; (b) proceedings by a public agency that may result in taxes or assessments, or notices of such proceedings, whether or not shown by the records of such agency or by the Public Records.
7. (a) Unpatented mining claims; (b) reservations or exceptions in patents or in Acts authorizing the issuance thereof; (c) water rights, claims or title to water.
8. ALL LEASES AND TENANCIES, IF ANY.
9. CONDITIONS AND STIPULATIONS IN PATENTS FROM THE UNITED STATES RECORDED FEBRUARY 29, 1892 IN BOOK 52 AT PAGE 133 AS FOLLOWS:
FIRST, THAT THE GRANT HEREBY MADE IS RESTRICTED IN ITS EXTERIOR LIMITS TO THE BOUNDARIES OF THE SAID MINING PREMISES, AND TO ANY VEINS OR LODES OF QUARTZ OR OTHER ROCK IN PLACE BEARING GOLD, SILVER, CINNABAR, LEAD, TIN, COPPER OR OTHER VALUABLE DEPOSITS, WHICH MAY HAVE BEEN DISCOVERED WITHIN SAID LIMITS SUBSEQUENT TO AND WHICH WERE NOT KNOWN TO EXIST ON APRIL 6, 1885.
SECOND, THAT SHOULD ANY VEIN OR LODE OF QUARTZ OR OTHER ROCK IN PLACE BEARING GOLD, SILVER, CINNABAR, LEAD, TIN, COPPER OR OTHER VALUABLE DEPOSITS, BE CLAIMED OR KNOWN TO EXIST WITHIN THE ABOVE DESCRIBED PREMISES AT SAID LAST NAMED DATE, THE SAME IS EXPRESSLY EXCEPTED AND EXCLUDED FROM THESE PRESENTS.
THIRD, THAT THE PREMISES HEREBY CONVEYED MAY BE ENTERED BY THE PROPRIETOR OF ANY VEIN OR LODE OF QUARTZ OR OTHER ROCK IN PLACE BEARING GOLD, SILVER, CINNABAR, LEAD, TIN, COPPER OR OTHER VALUABLE DEPOSITS FOR THE PURPOSE OF EXTRACTING AND REMOVING THE ORE FROM SUCH VEIN OR LODE SHOULD THE SAME OR ANY PART THEREOF BE FOUND TO PENETRATE, INTERSECT, PASS THROUGH OR DIP INTO THE MINING GROUND OR PREMISES GRANTED. .
FOURTH, THAT IN THE ABSENCE OF NECESSARY LEGISLATION BY CONGRESS, THE LEGISLATURE OF COLORADO MAY PROVIDE RULES FOR WORKING THE MINING CLAIM OR PREMISES HEREBY GRANTED, INVOLVING EASEMENTS, DRAINAGE AND OTHER NECESSARY MEANS TO THE COMPLETE DEVELOPMENT THEREOF.

ALTA COMMITMENT
Old Republic National Title Insurance Company
Schedule B, Part II
(Exceptions)

Order Number: ABS86016738-5

10. EASEMENT GRANTED TO ROCKY MOUNTAIN NATURAL GAS COMPANY, INC., FOR RIGHT OF WAY FOR PIPELINE, AND INCIDENTAL PURPOSES, BY INSTRUMENT RECORDED AUGUST 19, 1986, IN BOOK 429 AT PAGE [328](#).
11. TERMS, CONDITIONS, PROVISIONS, BURDENS AND OBLIGATIONS AS SET FORTH IN THE LAWSON HILL PLANNED UNIT DEVELOPMENT, RESOLUTION OF THE BOARD OF COUNTY COMMISSIONERS, SAN MIGUEL COUNTY, COLORADO, GRANTING PRELIMINARY APPROVAL THEREOF, RESOLUTION #1991-22, RECORDED MAY 03, 1991 IN BOOK 477 AT PAGE [367](#); AND FIRST AMENDMENT RECORDED APRIL 16, 1992 IN BOOK 490 AT PAGE [1026](#).
12. TERMS, CONDITIONS, PROVISIONS, BURDENS AND OBLIGATIONS AS SET FORTH IN AGREEMENTS WITH THE TOWN OF TELLURIDE RECORDED JUNE 07, 1991 IN BOOK 478 AT PAGE [607](#) AND [642](#).
13. TERMS, CONDITIONS, PROVISIONS, BURDENS AND OBLIGATIONS AS SET FORTH IN DECLARATION OF EASEMENTS RECORDED APRIL 16, 1992 IN BOOK 490 AT PAGE [1016](#).
14. TERMS, CONDITIONS, PROVISIONS, BURDENS AND OBLIGATIONS AS SET FORTH IN EASEMENT FOR POWER LINE AND RELATED FACILITIES RECORDED MARCH 20, 1995 IN BOOK 543 AT PAGE [476](#).
15. EASEMENTS, CONDITIONS, COVENANTS, RESTRICTIONS, RESERVATIONS AND NOTES ON THE RECORDED PLATS:
#1 - LAWSON HILL PUD PHASE 9 RECORDED JULY 14, 1995 IN PLAT BOOK 1 AT PAGE [1891](#);
#2 - TELECAM/ILIUM PARK, A PLANNED COMMUNITY RECORDED JUNE 19, 1996 IN PLAT BOOK 1 AT PAGE [2058](#);
#3 - SUBDIVISION EXEMPTION FOR A SINGLE LOT SPLIT FOR LOT 400, LAWSON HILL P.U.D. RECORDED APRIL 26, 1999 IN PLAT BOOK 1 AT PAGE [2540](#);
#4 - ROAD DEDICATION PLAT FOR COUNTY ROAD 63L RECORDED DECEMBER 7, 2006 IN PLAT BOOK 1 AT PAGE [3778](#);
#5 - SINGLE LOT SPLIT IN AN EXISTING SUBDIVISION FOR LOT 400, PHASE 9, LAWSON HILL P.U.D. RECORDED MAY 29, 2009 IN PLAT BOOK 1 AT PAGE [4193](#)
16. TERMS, CONDITIONS, PROVISIONS, BURDENS AND OBLIGATIONS AS SET FORTH IN RESOLUTION #1995-19 OF THE BOARD OF COUNTY COMMISSIONERS OF SAN MIGUEL COUNTY, APPROVING THE FINAL PLAT OF LAWSON HILL FILING 9 RECORDED JULY 14, 1995 IN BOOK 548 AT PAGE [347](#) AND RESOLUTION #1995-52, APPROVING A FINAL PLAT, REZONING AND SUBSTANTIAL PLAT AMENDMENT FOR LAWSON HILL PHASE 10 RECORDED DECEMBER 19, 1995 IN BOOK 554 AT PAGE [786](#).
17. TERMS, CONDITIONS, PROVISIONS, BURDENS AND OBLIGATIONS AS SET FORTH IN SUBDIVISION IMPROVEMENTS AGREEMENT RECORDED JULY 14, 1995 IN BOOK 548 AT PAGE [359](#) AND AS AMENDED IN INSTRUMENT RECORDED DECEMBER 20, 1999 UNDER RECEPTION NO. [331332](#) AND AS AMENDED IN INSTRUMENT RECORDED SEPTEMBER 27, 2000 UNDER RECEPTION NO. [336991](#).
18. COVENANTS, CONDITIONS AND RESTRICTIONS, WHICH DO NOT CONTAIN A FORFEITURE OR REVERTER CLAUSE, BUT OMITTING ANY COVENANTS OR RESTRICTIONS, IF ANY, BASED UPON RACE, COLOR, RELIGION, SEX, SEXUAL ORIENTATION, FAMILIAL STATUS, MARITAL STATUS, DISABILITY, HANDICAP, NATIONAL ORIGIN, ANCESTRY, OR SOURCE OF INCOME, AS SET FORTH IN APPLICABLE STATE OR FEDERAL LAWS, EXCEPT TO THE EXTENT THAT SAID COVENANT OR RESTRICTION IS PERMITTED BY APPLICABLE LAW, AS CONTAINED IN INSTRUMENT RECORDED JUNE 19, 1996, IN BOOK 563 AT PAGE [382](#), AMENDED IN INSTRUMENT RECORDED APRIL 16, 1999 UNDER RECEPTION NO. [325685](#), AND AMENDED IN INSTRUMENT RECORDED DECEMBER 6, 2006 UNDER RECEPTION NO. [388919](#), AND ASSIGNMENT OF DECLARANT RIGHTS RECORDED SEPTEMBER 26, 2013 UNDER RECEPTION NO. [429912](#), AND AMENDED IN INSTRUMENT RECORDED OCTOBER 14, 2013 UNDER RECEPTION NO. [430287](#).

ALTA COMMITMENT
Old Republic National Title Insurance Company
Schedule B, Part II
(Exceptions)

Order Number: ABS86016738-5

ILIUM PARK OWNERS ASSOCIATION NOTICE OF DISPOSITION OF REAL ESTATE TRANSFER ASSESSMENT RECORDED OCTOBER 02, 2013 UNDER RECEPTION NO. [429986](#) AS AMENDED BY INSTRUMENT RECORDED FEBRUARY 3, 2014 UNDER RECEPTION NO. [431625](#).

19. TERMS, CONDITIONS, PROVISIONS, BURDENS AND OBLIGATIONS AS SET FORTH IN BILL OF SALE AND LICENSE FOR WATER RECORDED APRIL 16, 1999 UNDER RECEPTION NO. [325686](#).
20. TERMS, CONDITIONS, PROVISIONS, BURDENS AND OBLIGATIONS AS SET FORTH IN LICENSE BY AND BETWEEN TELECAM PARTNERSHIP II AND TELECAM/ILIUM PARK ASSOCIATION, INC. RECORDED APRIL 16, 1999 UNDER RECEPTION NO. [325688](#).
21. TERMS, CONDITIONS, PROVISIONS, BURDENS AND OBLIGATIONS AS SET FORTH IN RESOLUTION #1998-29 GRANTING A SUBDIVISION EXEMPTION FOR A SINGLE-LOT SPLIT, LOT 400, LAWSON HILL PUD RECORDED APRIL 26, 1999 UNDER RECEPTION NO. [325919](#).
22. TERMS, CONDITIONS, PROVISIONS, BURDENS AND OBLIGATIONS AS SET FORTH IN LAWSON HILL PUD, ILIUM VALLEY LAND USE MATRIX RECORDED DECEMBER 17, 1999 UNDER RECEPTION NO. [331303](#), AND RECORDED NOVEMBER 20, 2002 UNDER RECEPTION NO. [353234](#) AND LAWSON HILL PUD DEVELOPMENT PLAN LAND USE MATRIX RECORDED NOVEMBER 8, 2005 UNDER RECEPTION NO. [379371](#), AND SAN MIGUEL PLANNING DEPARTMENT LETTER, RECORDED JULY 19, 2006 UNDER RECEPTION NO. [385457](#) AND AS AMENDED IN INSTRUMENT RECORDED APRIL 2, 2010 UNDER RECEPTION NO. [411913](#) AND AS AMENDED IN INSTRUMENT RECORDED OCTOBER 18, 2010 UNDER RECEPTION NO. [414740](#) AND AS AMENDED IN INSTRUMENT RECORDED SEPTEMBER 20, 2013 UNDER RECEPTION NO. [429839](#), AND AS AMENDED IN INSTRUMENT RECORDED FEBRUARY 28, 2014 UNDER RECEPTION NO. [431868](#) AND AS AMENDED IN INSTRUMENT RECORDED JUNE 11, 2015 UNDER RECEPTION NO. [437926](#), AND AS AMENDED IN INSTRUMENT RECORDED JUNE 16, 2017 UNDER RECEPTION NO. [449015](#).
23. TERMS, CONDITIONS, PROVISIONS, BURDENS AND OBLIGATIONS AS SET FORTH IN RESOLUTION #2006-46 OF THE BOARD OF COMMISSIONERS OF SAN MIGUEL COUNTY RECORDED DECEMBER 07, 2006 UNDER RECEPTION NO. [388897](#).
24. TERMS, CONDITIONS, PROVISIONS, BURDENS AND OBLIGATIONS AS SET FORTH IN RESOLUTION 2009-4 GRANTING A SUBDIVISION EXEMPTION FOR A SINGLE-LOT SPLIT, LOT 400, LAWSON HILL PUD RECORDED MAY 29, 2009 UNDER RECEPTION NO. [407158](#).
25. EASEMENT GRANTED TO SAN MIGUEL POWER ASSOCIATION, INC., FOR UNDERGROUND POWER LINE AND RELATED FACILITIES, AND INCIDENTAL PURPOSES, BY INSTRUMENT RECORDED JULY 09, 2013, UNDER RECEPTION NO. [428882](#).
26. TERMS, CONDITIONS AND PROVISIONS OF QUIT CLAIM DEED RECORDED SEPTEMBER 26, 2013 UNDER RECEPTION NO. [429911](#).
27. TERMS, CONDITIONS AND PROVISIONS OF ASSIGNMENT RECORDED SEPTEMBER 26, 2013 AT RECEPTION NO. [429913](#).
28. TERMS, CONDITIONS, PROVISIONS, BURDENS AND OBLIGATIONS AS SET FORTH IN SETTLEMENT AGREEMENT AND MUTUAL RELEASES RECORDED OCTOBER 14, 2013 UNDER RECEPTION NO. [430286](#) AND RECORDED FEBRUARY 03, 2014 UNDER RECEPTION NO. [431626](#).

ALTA COMMITMENT
Old Republic National Title Insurance Company
Schedule B, Part II
(Exceptions)

Order Number: ABS86016738-5

29. ANY FACTS, RIGHTS, INTERESTS, OR CLAIMS WHICH MAY EXIST OR ARISE BY REASON OF THE FOLLOWING FACTS SHOWN ON THE IMPROVEMENT SURVEY PLAT, CERTIFIED NOVEMBER 17, 2025, PREPARED BY SAN JUAN SURVEYING, JOB # 08011

SAID DOCUMENT STORED AS OUR IMAGE [78786941](#)

A: BOULDER RETAINING WALL IS LOCATED IN THE 20' DRAINAGE EASEMENT AND THE 20' POWERLINE EASEMENT.

and that there is substantial likelihood that a third party holds some or all interest in oil, gas, other minerals, or geothermal energy in the property; and

- (B) That such mineral estate may include the right to enter and use the property without the surface owner's permission.

Note: Pursuant to CRS 10-1-128(6)(a), It is unlawful to knowingly provide false, incomplete, or misleading facts or information to an insurance company for the purpose of defrauding or attempting to defraud the company. Penalties may include imprisonment, fines, denial of insurance, and civil damages. Any insurance company or agent of an insurance company who knowingly provides false, incomplete, or misleading facts or information to a policyholder or claimant for the purpose of defrauding or attempting to defraud the policyholder or claimant with regard to a settlement or award payable from insurance proceeds shall be reported to the Colorado Division of Insurance within the Department of Regulatory Agencies.

Note: Pursuant to Colorado Division of Insurance Regulations 8-1-3, notice is hereby given of the availability of a closing protection letter for the lender, purchaser, lessee or seller in connection with this transaction.

Note: Pursuant to CRS 24-21-514.5, Colorado notaries may remotely notarize real estate deeds and other documents using real-time audio-video communication technology. You may choose not to use remote notarization for any document.

492308

Page 1 of 2

SAN MIGUEL COUNTY, CO

MICHAEL WYSZYNSKI, CLERK-RECORDER

02-09-2026 12:54 PM Recording Fee \$43.00

State Documentary Fee
\$249.50 02-09-2026



Land Title'
CUARANTII COMPANY
-----SfWC *\$>7-----

Special Warranty Deed

(Pursuant to C.R.S. 38-30-113(1)(b))

State Documentary Fee
Date: February 06, 2026
\$249.50

This Deed, effective as of February 6th, 2026, signed on the date(s) acknowledged below, by Grantor(s), TELECAM PARTNERSHIP II, LIMITED, A COLORADO LIMITED PARTNERSHIP, whose street address is PO BOX 3231, TELLURIDE, CO 81435, City or Town of TELLURIDE, County of San Miguel and State of Colorado , for the consideration of (\$-----Redacted-----) ***-----Redacted----- dollars, in hand paid, hereby sell(s) and convey(s) toTOKU INDUSTRIES, LLC, A COLORADO LIMITED LIABILITY COMPANY, whose street address is PO BOX 91, PLACERVILLE, CO 81430, City or Town of PLACERVILLE, County of San Miguel and State of Colorado, the following real property in the County of San Miguel and State of Colorado, to wit:

LOT 400-15
SINGLE LOT SPLIT IN AN EXISTING SUBDIVISION FOR LOT 400,
PHASE 9,
LAWSON HILL P.U.D.,
RECORDED MAY 29, 2009 UNDER RECEPTION NO. 407159,
COUNTY OF SAN MIGUEL, STATE OF COLORADO.

also known by street and number as: 780 VANCE DRIVE, TELLURIDE, CO 81435

with all its appurtenances and warrant(s) the title to the same against all persons claiming under me(us), subject to Statutory Exceptions.

(SEE ATTACHED "SIGNATURE PAGE")

When recorded return to: TOKU INDUSTRIES, LLC, A COLORADO LIMITED LIABILITY COMPANY
PO BOX 91, PLACERVILLE, CO 81430



Special Warranty Deed with Statutory Exceptions

SIGNATURE PAGE

TELECAM PARTNERSHIP II, LIMITED, A COLORADO
LIMITED PARTNERSHIP

BY: MACELET, INC., A COLORADO CORPORATION,
GENERAL PARTNER

By: [Signature]
CAMERON JONES, PRESIDENT

JENNIFER KATE OGILVIE
NOTARY PUBLIC
STATE OF COLORADO
NOTARY ID 20254016860
MY COMMISSION EXPIRES 04/30/2029

State of Colorado)
County of San Miguel) ss.
)

The foregoing instrument was acknowledged before me on this day of October, 2021, by CAMERON JONES AS PRESIDENT OF MACELET, INC., A COLORADO CORPORATION, GENERAL PARTNER OF TELECAM PARTNERSHIP I, LIMITED AS THE GENERAL PARTNER/MANAGER OF TELECAM PARTNERSHIP II, LIMITED, A COLORADO LIMITED PARTNERSHIP.

Witness my hand and official seal. i

My Commission expires: 04/30/2029

[Signature]
Notary Public

**APPLICANT'S CERTIFICATION OF COMPLIANCE WITH THE PUBLIC NOTICING
REQUIREMENTS OF THE SAN MIGUEL COUNTY LAND USE CODE SECTION 3-9**

Toku Industries, LLC, Applicant, or the duly designated agent(s) of Applicant, has applied to San Miguel County for approval of a land use application. Applicant recognizes that the provisions of the San Miguel County Land Use Code (LUC) Section 3-9 require public notice by First Class mail and posting of the property not less than twenty (20) days before the date scheduled for a public meeting or hearing.

Applicant or Applicant's agent(s) have examined the current tax records of San Miguel County as they appeared either in the records of the San Miguel County Assessor or under the San Miguel County Geographic Information Systems* (GIS) mapping program no more than sixty (60) days prior to the date of the public meeting or hearing. Applicant or Applicant's agent(s) hereby certifies that: (Applicant must check all.)

- ☒ Following an examination of the records in the San Miguel County Assessor or under the San Miguel County GIS* mapping program, the Applicant has provided public notice, in compliance with LUC § 3-903C not less than twenty (20) days before the date scheduled for a public meeting or hearing, by First Class mail to every property owner and condominium unit owner within 500 feet of the perimeter of the subject property. **I hereby certify that I have attached a copy of this public notice letter and mailing list to this certification.**

AND

- ☒ Not less than twenty (20) days before the date scheduled for a public meeting or hearing, I hereby certify that, in compliance with LUC § 3-903B, public notice has also been provided by posting a sign in a conspicuous place on the property that is the subject of the land use application.

I understand that San Miguel County requires completion and delivery of this Certification of Compliance to the San Miguel County Planning Department at least ten (10) days prior to the initial public meeting or hearing on a land use application. I further understand that failure to submit the required Certification of Compliance to the County Planning Department at least ten (10) days prior to the initial public meeting on a land use application will result in the public meeting or hearing being rescheduled to a later date.

KEVIN Hopkin
Name

Toku Industries, LLC
(Insert Applicant's name if executed by agent)

Unique Litho Inc.
Physical location of Property and/or legal description

9 INVERNESS DRIVE EAST Englewood Co 80112
Mailing Address (if different from above)

Date: 4-23-2026

Signature: [Signature]

[text/luc/certification.property.owner]

* GIS data may not accurately or completely reflect owners in multi-unit, multi-floor buildings in San Miguel County. In such instance, the applicant must examine the Assessor's information in addition to the GIS data in order to provide the required public notice.

**SAN MIGUEL COUNTY COLORADO
PLANNING COMMISSION
REGULAR MEETING
THURSDAY, MAY 14, 2026 - 9:30 AM**

Location of Meeting: 333 West Colorado Ave., Second Floor Meeting Room, Telluride, CO 81435

Zoom Protocol
Invite link:
<https://us06web.zoom.us/j/81034857865?pwd=BxCK7QyaOIl-8SIB1zJ9MckqF0pTJs71>
Meeting ID: 810 3485 7865
Passcode: 674724
If you wish to speak:

Via Computer:
Click **Raise Hand** in the webinar controls. The host will be notified that you've raised your hand.

If the host allows you to talk, you may be prompted to unmute yourself. While unmuted, your profile picture and name are displayed to the host and panelists. Only your name is displayed to other attendees.

Click **Raise Hand** in the webinar controls to lower it, if needed. This will not mute yourself if you are unmuted.

Windows: You can also use the **Alt+Y** keyboard shortcut to raise or lower your hand. **Mac:** You can also use the **Option+Y** keyboard shortcut to raise or lower your hand.

Telephone: If you join the webinar/meeting by phone, dial *9 to raise your hand.

- 9:30 a.m. Call to Order**
 - Approval of Minutes, Planning Commission and Staff Comments**
a. March Minutes --
 - Public Hearing: Land Use Application**
a. TABLED Garlock Special Use Permit for Social & Scenic Uses --
Public Hearing: Land Use Application
 - Public Hearing: Land Use Application**
a. CANCELLED -- Crockett Special Use Permit for construction/contractor staging --
 - Public Meeting: Land Use Application**
a. Lot 400-15, LHPUD Ilium Substantial PUD Amendment --
 - Land Use Code Amendment Recommendation**
a. Land Use Code Amendment: Adding "Footprint" to definition section of the Land Use Code and related amendments --
 - Land Use Code Amendment Recommendation**
a. Land Use Code Amendment: Accelerated Housing Review --
 - Work Session**
a. Draft Land Use Code Amendment: Natural Medicine --
 - Adjournment**
- NOTE: All times are approximate; items may begin earlier (except public hearings) or later than scheduled. For more information contact Planning Department at (970) 369- 5423.**
If special accommodations are necessary per ADA, contact 970-728-3844, via email bocc@sanmiguel-countyco.gov prior to the meeting.
5/7 COL-000132

**TOWN OF MOUNTAIN VILLAGE
NOTICE**

Notice is hereby given that the following Ordinance passed on second reading at the Town of Mountain Village Town Council meeting held April 23, 2026 with changes. Ordinances are available for review

during regular business hours in the office of the Town Clerk, 455 Mountain Village Blvd, Suite A, Mountain Village or on the website at www.townofmountainvillage.com.

Ordinance Regarding Community Development Code (CDC) Amendments for Compliance with Colorado Wildfire Resilience Code (CWRC)
Ordinances will be codified and incorporated into the Town of Mountain Village Municipal Code prior to effective date or as soon as practicable after an emergency ordinance has passed.
5/7 COL-000127

Notice to First Mortgagees Regarding Consent to First Amendment to Declaration Village Creek Condominium Association, a Colorado nonprofit corporation

Property: **Village Creek Condominiums**, as established by the Condominium Declaration recorded December 23, 1987 in Book 441, page 232, Reception No. 252130 in the real property records of the Office of the Clerk and Recorder of San Miguel County, Colorado, as supplemented (the **"Declaration"**); and according to the Condominium Map recorded December 23, 1987 in Plat Book 1 at page 785, Reception No. 252131, as amended, County of San Miguel, State of Colorado
To: Any and All First Mortgagees at the above-referenced Property.
Please take notice that **Village Creek Condominium Association, a Colorado nonprofit corporation** ("the Association") has issued a proposed First Amendment to the Declaration.

Pursuant to C.R.S. sec. 38-33-3-217, this Notice is being printed at least twice, on separate occasions at least one week apart, in a newspaper of general circulation in San Miguel County, Colorado. Notice has also been issued to all First Mortgagees. If a First Mortgagee does not deliver to the Association a negative response within sixty (60) days after the date of the mailed notice, the First Mortgagee will be deemed to have approved the proposed amendment. A copy of the proposed First Amended and Restated Declaration may be obtained by contacting the Association Manager: Jordin Edwards
Clear View HOA Financial
220 East Colorado Avenue (physical)
PO Box 2710 (mail)
Telluride, Colorado 81435
Tel: (970) 422-1780
E-mail: jordin@Clearviewhoafinancial.com
5/7, 5/14 COL-000128

**TOWN OF MOUNTAIN VILLAGE
NOTICE**

Notice is hereby given that the following Ordinances passed on the first reading at the Town of Mountain Village Town Council meeting held April 23, 2026. The second reading, public hearing and final Council vote will take place on Thursday, May 21, 2026, at 2:00 p.m., in the 2nd floor conference room, Mountain Village Town Hall, Mountain Village and via Zoom. Ordinances are available for review during regular business hours in the office of the Town Clerk, 455 Mountain Village Blvd, Suite A, Mountain Village or on the website at www.townofmountainvillage.com.

Ordinance Regarding Community Development Code Amendments to Section 17.5.12 Lighting Regulations
Ordinance Amending Chapter 17.7 Building Regulations of the Municipal Code
Emergency Ordinance Amending Chapter 13.03 of the Mountain Village Municipal Code to Authorize Staff to Impose Water Usage Restrictions in Times of Drought or Emergency and to Provide Penalties for Violations
Ordinances will be codified and incorporated into the Town of Mountain Village Municipal Code prior to effective date or as soon as practicable after an emergency ordinance has passed.
5/7 COL-000126

Public Notice -The San Miguel County Board of Health will consider regulatory options related to Colorado Regulation 43 (5 CCR 1002-43), On-site Wastewater Treatment Systems, during its regular scheduled meeting on May 20, 2026 held in, 333 West Colorado Ave, 2nd floor, Telluride, CO 81423.

The meeting will provide an opportunity for public comment and participation. Community members interested in reviewing relevant regulatory materials may visit [bit.ly/smcwastewater](https://smcwastewater.com). For additional information or comments call 970-708-0323 or kevinc@sanmiguel-countyco.gov.
4/30, 5/7 COL-000121

San Miguel County requests proposals for a contractor to replace flooring at 333 & 305 W. Colorado Ave, Telluride, CO. RFP info available at www.sanmiguel-countyco.gov/bids.aspx , or 333 W. Colorado Ave 2nd flr, Telluride. Contact Greg Pollio at (970) 369-5424 or gregg@sanmiguel-countyco.gov.
Deadline for proposals: 5:00 PM Friday, June 5th either via email or dropped off at the Maintenance dept at 333 W. Colorado Ave, Telluride.
5/7, 5/14, 5/21, 5/28 COL-000131

San Miguel County requests proposals for a contractor to replace the boiler system at the Down Valley Park in Placerville. RFP info available at www.sanmiguel-countyco.gov/bids.aspx or the Parks & Open Space dept, 333 W Colorado Ave, 3rd flr, Telluride. Contact Janet Kask 970-369-5469, janetk@sanmiguel-countyco.gov .
Deadline for proposals: 5:00 PM June 4 either via email or dropped off at Parks & Open Space dept in Telluride.
5/7, 5/14, 5/21, 5/28, 6/4 COL-000133

PUBLIC HEARING NOTICE

The San Miguel County Board of Health (BOCC) has been asked to consider an OWTS Variance Application for Sheamus Croke, the owner of LOTS 5 AND 6 BLK M OPHIR. The applicant seeks a Variance to the Minimum Setbacks as stated in Table 7-1 of the San Miguel County On-Site Wastewater Treatment System (OWTS) Regulations. The request is to reduce the setback from the Soil Treatment Area to the southwest property line from 10 feet to 2 feet. An OWTS Variance Application requires a One-step Board of Health review pursuant to San Miguel County On-Site Wastewater Treatment System Regulation, Section 7 Variances [43.4(N)].

A Public Hearing on the above proposal will be held by the Board of Health on May 27, 2026 at 2:00 PM. This meeting will be held virtually. Interested parties may attend in person in the Second Floor meeting room, Miramonte Building, 333 W. Colorado Ave., Telluride, CO 81435.
Zoom & Meeting information:
When: May 27, 2026 02:00 PM Mountain Time (US and Canada)
Register in advance for this meeting: https://us02web.zoom.us/meeting/register/Tg73_6Q9Soulp8dXx71sf
Meeting ID 886 0088 9761
Passcode 042834
You may appear if you so desire, in person or via Zoom virtual on-line meeting, or by agent or attorney, to ask question or provide comment regarding the proposed request. Written comments of more than one page may not receive complete consideration if not received by July 27, 2022. Send written comments to: San Miguel County Environmental Health Department, PO Box 1170, Telluride, CO 81435 or to kevinc@sanmiguel-countyco.gov .
5/7 COL-000135

PUBLIC HEARING NOTICE

The San Miguel County Board of Health (BOCC) has been asked to consider an OWTS Variance Application for Slatro Aplin, the owner of Lot 1 & 2, Blk Q in Ophir. The applicant seeks a Variance to the Minimum Setbacks as stated in Table 7-1 of the San Miguel County On-Site Wastewater Treatment System (OWTS) Regulations. The request is to reduce the setback from the Soil Treatment Area to the southwest property line from 10 feet to 2 feet. An OWTS Variance Application requires a One-step Board of Health review pursuant to San Miguel County On-Site Wastewater Treatment System Regulation, Section 7 Variances [43.4(N)].
A Public Hearing on the above proposal will be held by the Board of Health on May 27, 2026 at 2:00 PM. This meeting will be held virtually. Interested parties may attend in person in the Second Floor meeting room, Miramonte Building, 333 W. Colorado Ave., Telluride, CO 81435. You are invited to a Zoom meeting.
When: May 27, 2026 02:00 PM Mountain Time (US and Canada)
Register in advance for this meeting: https://us02web.zoom.us/meeting/register/Tg73_6Q9Soulp8dXx71sf
Meeting ID 886 0088 9761
Passcode 042834
You may appear if you so desire, in person or via Zoom virtual on-line meeting, or by agent or attorney, to ask question or provide comment regarding the proposed request. Written comments of more than one page may not receive complete consideration if not received by May 1, 2026. Send written comments to: San Miguel County Environmental Health Department, PO Box 1170, Telluride, CO 81435 or to kevinc@sanmiguel-countyco.gov .
5/7 COL-000134

San Miguel County requests proposals for a contractor for landscape improvements to the Galloping Goose Park in Telluride. RFP info available at www.sanmiguel-countyco.gov/bids.aspx or the Parks & Open Space dept, 333 W Colorado Ave, 3

rd flr, Telluride. Contact Janet Kask (970)369-5469, janetk@sanmiguel-countyco.gov .
Deadline for proposals: 5:00 PM Friday, May 22 either via email or dropped off at Parks & Open Space dept in Telluride.
4/23, 4/30, 5/7, 5/14, 5/21 COL-000117

PUBLIC NOTICE – REQUEST FOR PROPOSALS

San Miguel County, Colorado, is soliciting proposals for the design and construction of a mechanically stabilized earth (MSE) retaining wall on County Road 58P north of Sawpit, Colorado, including design, engineering, and construction services. RFP documents are available at <https://www.sanmiguel-countyco.gov/Bids.aspx> or from the San Miguel County Road & Bridge Department, 1120 Summit Street, Norwood, CO 81423, (970) 327-4835, road-bridge@sanmiguel-countyco.gov.
A mandatory pre-bid meeting will be held on May 14, 2026 at 1:00 PM MT. The onsite pre-bid meeting will be located approximately 0.5 miles north of the town of Sawpit on County Road 58P. Questions must be submitted via email to ryanr@sanmiguel-countyco.gov by May 19, 2026 at 5:00 PM MT.
Proposals must be submitted electronically to roadandbridgesealed-bid@sanmiguel-countyco.gov no later than May 26, 2026, at 5:00 PM MT.
Award will be made to the respondent offering the best value based on cost and qualifications. Notification of Selection (Tentative) will be on May 28, 2026, at 4:00 PM Mountain Time at the Road & Bridge Office located in Norwood at 1120 Summit St, Norwood, CO 81423.
5/7, 5/14 COL-000125

ORDINANCE NO. 1632 SERIES OF 2026

The Town Council Of The Town Of Telluride, Colorado Passed Ordinance #1632 An Ordinance Of The Town Council Of The Town Of Telluride, Colorado Authorizing The Sale Of Element 52 SW-102. At A Regular Meeting On April 28, 2026. Ordinance #1632 Shall Become Effective Upon The Date Of Publication Of Notice Of Its Passage, And Copies Of The New Ordinance Are Available At Town Hall Or Online At <https://www.telluride-co.gov/89/> Mayor-Town-Council. Tiffany Kavanaugh, Town Clerk
5/7 COL-000129

ORDINANCE NO. 1633 SERIES OF 2026

The Town Council Of The Town Of Telluride, Colorado Passed Ordinance #1633 An Ordinance Of The Town Council Of The Town Of Telluride, Colorado Authorizing The Sale Of Silver Jack 205 At A Regular Meeting On April 28, 2026. Ordinance #1633 Shall Become Effective Upon The Date Of Publication Of Notice Of Its Passage, And Copies Of The New Ordinance Are Available At Town Hall Or Online At <https://www.telluride-co.gov/89/> Mayor-Town-Council. Tiffany Kavanaugh, Town Clerk
5/7 COL-000130

**Request for Proposals
Deputy Municipal Court Judge**

The Town of Telluride is inviting proposals from qualified individuals to provide

Deputy Municipal Court Judge Services. Telluride Municipal Court is a Court of Record and meets as required. Proposals will be accepted until 12:00pm, noon, June 5, 2026. Late proposals will not be accepted. Proposals should be prepared and submitted as detailed in the Request for Proposals at: bit.ly/totbids. The Town reserves the right to reject any or all proposals, to waive irregularities or informalities in proposals, and to re-advertise for proposals if desired.
5/7 COL-000124

NOTICE OF A PUBLIC HEARING BEFORE THE PLANNING AND ZONING COMMISSION CHAIR

Notice is hereby given that on Thursday, May 28, 2026, at 5:30 p.m. or thereafter via Hybrid meeting at [www.Zoom.us](https://www.zoom.us) "Join a Meeting" or by Phone at 1-301-715-8592 or 1-253-215-8782.

Meeting ID # 846 6324 0731; Password: 464545
A Hearing will be held to consider: **PROJECT TITLE: 238 North Pine Street – Minor Subdivision**
SUMMARY: Consideration by the Planning and Zoning Commission of a Minor Subdivision pursuant to Land Use Code Section 6-403.b to subdivide a parcel of land of seven thousand five hundred (7,500) square feet or less to create two lots.

LEGAL DESCRIPTION: Lot 18, Block 28, Telluride
ADDRESS: 238 N Pine Street
ZONE DISTRICT: Historic Residential
OWNER: 238 North Pine Street, LLC, A Colorado Limited Liability Company
APPLICANT: Alpine Planning – Christopher Hawkins
More complete information is on file and available at Rebekah Hall, 113 W Columbia, (970)728-2170. Published in the Telluride Daily Planet on Thursday, May 7, 2026
5/7 COL-000137

NOTICE OF A PUBLIC HEARING BEFORE THE PLANNING AND ZONING COMMISSION CHAIR

Notice is hereby given that on Thursday, May 28, 2026, at 5:30 p.m. or thereafter via Hybrid meeting at [www.Zoom.us](https://www.zoom.us) "Join a Meeting" or by Phone at 1-301-715-8592 or 1-253-215-8782.

Meeting ID # 846 6324 0731; Password: 464545
A Hearing will be held to consider: **PROJECT TITLE: Carhenge Redevelopment Project - Conceptual PUD**
SUMMARY: Consideration of a Conceptual Planned Unit Development (PUD) application for proposed new construction on Town property, pursuant to LUC 6-307.F.

LEGAL DESCRIPTION: Lots 34 and 34B, Backman Village Subdivision, According to the Plat, recorded June 29, 1979 Under Reception No. 212301, County of San Miguel, State of Colorado
ADDRESS: 700 W Pacific Ave (Carhenge Lot)
ZONE DISTRICT: Accommodations 2
OWNER: Town of Telluride
APPLICANT: Design Workshop
More complete information is on file and available at Rebekah Hall, 113 W Columbia, (970)728-2170. Published in the Telluride Daily Planet on Thursday, May 7, 2026
5/7 COL-000136 ■

Fairmont
HERITAGE PLACE
FRANZ KLAMMER LODGE

NOW HIRING!
Summer 2026 & Year-Around Positions

- Bellperson/Driver (FT)
- Accountant (FT, Temporary)
- Housekeeping Attendant (FT/PT)
- Fitness Instructor (PT)

Amazing Benefits: Health/Dental/Vision, Disability Insurance, Supplemental Health Coverages, 401k, Ski/Spa Pass, Holiday Pay, Annual Review Process

APPLY HERE: <https://bit.ly/FairmontFKLApply>

**WANT YOUR
CLASSIFIED AD HERE?**



**Contact Us
Today!**
970.728.9788
TellurideNews.com

THE TELLURIDE TIMES



John Huebner <johnh@sanmiguelcountyco.gov>

REFERRAL: Mahoney Lot 400-15, LHPUD (Ilium Valley) Substantial PUD Amenment application

1 message

John Huebner <johnh@sanmiguelcountyco.gov>

Mon, Apr 13, 2026 at 10:59 AM

To: Mike Bordogna <mikeb@sanmiguelcountyco.gov>, Jarrod Biggs <jarrodb@sanmiguelcountyco.gov>, "Maura Boylan (Fahey)" <mauraf@sanmiguelcountyco.gov>, Matt Gonzales <mattg@sanmiguelcountyco.gov>, Scott Heidergott <sheidergott@telluridefire.com>, Pamela@smrha.org, "Reeder, Sherri" <sreeder@tellurideskiresort.com>

Please find the attached Substantial PUD Amendment application submitted by Jim Mahoney Inc for your review and comment. The County Planning Commission meeting date is Thursday, May 14, 2026. Please provide your review comments by May 4, 2026 to John Huebner, Senior Planner, johnh@sanmiguelcountyco.gov in the County Planning Department. Please contact the Planning Department if you have any questions.

John Huebner, AICP
Senior Planner
San Miguel County Planning Department
Main Office: (970)369-5423
Direct Line: (970)369-5437
www.sanmiguelcountyco.gov



Click [HERE](#) to go to the **SmartGov** public portal to apply for permits, check permit status, or view permit history.

San Miguel County is committed to providing equitable access to our services and communications. To request an accommodation or modification, please call 970-728-4382, or email accessibility@sanmiguelcountyco.gov

2 attachments



Mahoney.Substantial PUD.Lot 400-15. REFERRAL.pdf
5522K



IPOA Board Approval Lot 400-15 Max Floor Area Increase.pdf
240K

Ilium Park Owners Association

c/o Full Circle HOA Management
560 Mountain Village Blvd, Suite 102B, Mountain Village, CO 81435
Telephone (970) 369-1428 Mail@FullCircleHOA.com

Board of Directors

Date: April 3, 2026

Applicant: Toku Industries

Lot:400-15

Project: **Substantial PUD Amendment – Lot 400-15 (Climbing Gym / Mezzanine Addition)**

Status of Application: **APPROVED**/NOT APPROVED

Conditions/Notes:

Substantial PUD Amendment – Lot 40015 (Climbing Gym / Mezzanine Addition)

Summary of Request

Applicant requested HOA consent to proceed with a Substantial PUD Amendment to increase allowable floor area (approx. +1,100–1,200 SF) for a mezzanine within an existing commercial unit to support a climbing gym use.

Key Discussion Points

- No change to building footprint (interior mezzanine only)
- Parking appears adequate (subject to final plan)
- Additional restroom may trigger tap fee review
- Trash enclosure to be addressed
- No major external impacts anticipated
- Applicant to provide required documentation prior to building permit

Motion by Cameron Jones, second by Josh Blakeman, to approve support of the Substantial PUD Amendment for Lot 400-15, with conditions.

Approval is contingent upon:

1. Submission of a compliant **parking plan**
2. Submission of a **trash enclosure plan**
3. Review and compliance with **tap fee / fixture unit requirements**

All in favor, motion passed unanimously.

Thank you,

SHERRI REEDER

04/03/2026

Sherri Reeder, IPOA President

Title

Date

Signature: Sherri Reeder
Sherri Reeder (Apr 3, 2026 14:24:28 MDT)

Email: bsreeder@nntcwireless.com



John Huebner <johnh@sanmiguelcountyco.gov>

RE: REFERRAL: Mahoney Lot 400-15, LHPUD (Ilium Valley) Substantial PUD Amenment application

1 message

Mike Bordogna <mikeb@sanmiguelcountyco.gov>
To: John Huebner <johnh@sanmiguelcountyco.gov>

Wed, Apr 22, 2026 at 4:24 PM

I have no comment on this application John

From: John Huebner <johnh@sanmiguelcountyco.gov>

Sent: Monday, April 13, 2026 11:00 AM

To: Mike Bordogna <mikeb@sanmiguelcountyco.gov>; Jarrod Biggs <jarrodb@sanmiguelcountyco.gov>; Maura Boylan (Fahey) <mauraf@sanmiguelcountyco.gov>; Matt Gonzales <mattg@sanmiguelcountyco.gov>; Scott Heidergott <sheidergott@telluridefire.com>; Pamela <[smrha.org](mailto:Pamela@smrha.org)>; Reeder, Sherri <sreeder@tellurideskiresort.com>

Subject: REFERRAL: Mahoney Lot 400-15, LHPUD (Ilium Valley) Substantial PUD Amenment application

Please find the attached Substantial PUD Amendment application submitted by Jim Mahoney Inc for your review and comment. The County Planning Commission meeting date is Thursday, May 14, 2026. Please provide your review comments by May 4, 2026 to John Huebner, Senior Planner, johnh@sanmiguelcountyco.gov in the County Planning Department. Please contact the Planning Department if you have any questions.

John Huebner, AICP

Senior Planner

San Miguel County Planning Department

Main Office: (970)369-5423

Direct Line: (970)369-5437

www.sanmiguelcountyco.gov



Click [HERE](#) to go to the **SmartGov** public portal to apply for permits, check permit status, or view permit history.

San Miguel County is committed to providing equitable access to our services and communications. To request an accommodation or modification, please call 970-728-4382, or email accessibility@sanmiguelcountyco.gov

PUBLIC MEETING RECORD

County Planning Commission

Application: Amendment to San Miguel County Land Use Code - Section 5-1302
Accessory Dwelling Units and Article 7 Definitions

Date: May 14, 2026

1. San Miguel County Land Use Code (Adopted 11/30/90) with all amendments to date (By Reference Only)
2. San Miguel County Comprehensive Development Plan (Adopted 8/3/78) with all amendments to date (By Reference Only)
3. Memorandum to the San Miguel County Planning Commission from Nicola Kerr, Associate Planner, dated May 14, 2026
4. Draft Land Use Code Amendment, Section 5-1302 Accessory Dwelling Units and Article 7 Definitions

AGENCY COMMENTS

5. Memo from Nicola Kerr to Referral Agencies dated April 6, 2026

PUBLIC COMMENT

6. None

OTHER

None

MEMORANDUM

TO: San Miguel County Planning Commission
FROM: Nicola Kerr, Associate Planner
RE: Amendment to San Miguel County Land Use – Section 5-1302 Accessory Dwelling Units, and Article 7 Definitions
DATE: May 14, 2026

BACKGROUND

The San Miguel County Land Use Code currently lacks a definition for the term 'footprint'. Limits on allowable footprints are used to regulate several allowed uses in the County such as, the size of accessory buildings in the F zone, individual building allowances in the Lawson Hill Matrix, and more. It differs from the term floor area as a footprint encompasses the entire space that a building occupies on the ground. Floor area typically refers to an internal space and therefore multiple floor areas can be inside of one building.

An additional unclear dimensional reference was identified in the definition for Accessory Dwelling Units as well in Section 5-1302. It currently states the maximum "size" of an Accessory Dwelling Unit should be limited to 800 square feet. The term size is unclear. The planning department has been using the definition of floor area to regulate ADU's as they are often nestled inside of a larger building and therefore a footprint would not be an appropriate regulatory tool. The proposed amendment replaces the word "size" with "floor area".

PROPOSED AMENDMENT

New text is underlined, deleted text is ~~struck through~~, *** indicates text not shown and not being changed.

5-1302 – Accessory Dwelling Units

5-1302A. Applicability

One (1) accessory dwelling unit per lot or parcel may be approved in the HD, MD and LD Zone Districts subject to compliance with the standards in this section and the applicable Zone District. Refer to sections 3-4 and 4-7 for procedures and submission contents.

5-1302B. Standards

- I. An accessory dwelling unit shall not be:
 - a. Rented for a term less than six (6) months.
- II. An accessory dwelling unit shall:
 - a. Provide off-street parking in compliance with Section 5-702;
 - b. Be limited to a maximum-size floor area of eight hundred (800) square feet;
 - c. Be built in accordance with the County's adopted Building Code;

- d. Be attached to the main residence, unless either no higher than sixteen (16) feet or located within a customary residential accessory building, such as a garage;
 - e. In combination with the principal residence not exceed the maximum allowable floor area of the applicable zone district; and
 - f. Comply with the San Miguel County Sanitation Regulations.
- III. Accessory dwelling units (ADU) that are voluntarily deed-restricted in exchange for an Employee Housing Impact Fee credit shall be subject to the County R-1 Housing Deed Restriction (see Sections 5-1304 and 5-1305) and ADU Deed Restriction Covenant.

ARTICLE 7 – DEFINITIONS

Accessory Dwelling Unit

An additional dwelling unit, limited to a maximum **floor area** of eight hundred (800) square feet, accessory to a single-family residence in the High Density, Medium Density or Low-Density Zone District. The Floor Area of the Accessory Dwelling Unit shall be included in the Calculation for employee housing Impact Fee mitigation as defined in, and is subject to, Section 5-13 of this Code unless such unit is voluntarily deed restricted pursuant to LUC Section 5-1303G.XIX.

Footprint

The portion of a building or structure, that covers the ground, measured from the outside of exterior walls or columns in square feet, including cantilevered portions of a building. The footprint includes open areas not enclosed by walls but covered by a roof. The footprint excludes the edge of roofs that overhang exterior walls or support structures, by up to 2 feet, that are intended to prevent rain, snow, and other debris from spilling directly down the side of the building (e.g., roof eave), as well as open decks and patios.

(Note Staff has modified this proposed definition to limit the eave overhang to a maximum of two feet.)

PUBLIC NOTICE

The meeting agenda was published on the County website and in the Telluride Times on May 7, 2026.

REFERRAL AGENCIES

The proposed Land Use Code text amendment was sent to the County Manager, County Attorney, Deputy County Manager, County Building Official, Town of Mountain Village, Town of Norwood, Town of Ophir, Town of Sawpit, and Town of Telluride.

No comments were received.

PUBLIC COMMENT

As of the writing of this report, no public comment has been received.

REVIEW STANDARDS

Review Standards for Land Use Code Amendments are contained in LUC Section 5-1802 and state, "Land Use Code Amendments may be initiated by the County or by persons who are residents of, or own property in, San Miguel County subject to compliance with the following standard." This amendment was initiated by staff. The only review standard, LUC Section 5-1802 A., states "Land Use Code Amendments shall be drafted in a form consistent with the organizational format and style of the code." The proposed amendment has been drafted in the format and style of the code.

In addition, Section 1-4, Purposes of the Land Use Code, should be considered.

1-402 Implement Policies

To implement the policies of San Miguel County regarding land use and development, housing, growth and related issues, as adopted and amended from time to time.

1-403 Create Common System of Administration and Regulation

To combine the regulation of all aspects of land use and development and the use of land and natural resources into a common system of administration and regulation.

1-404 Simplify the Land Use Regulatory Process

To simplify the application and review process for such regulatory system.

1-405 Protect Health, Safety and Welfare

To protect the health, safety and public welfare of San Miguel County.

SAMPLE MOTION:

I move to recommend to the Board of County Commissioners to approve the amendments to the Land Use Code for the purpose of clarifying the maximum size of Accessory Dwelling Units in Section 5-1302 and defining the term "footprint" in Article 7 as presented, based on the finding that the proposed amendment complies with the standards of Land Use Code Section 5-1802, Land Use Code Amendments, and is consistent with Land Use Code Section 1-4, Purposes of the Land Use Code.



Nicola Kerr <nicolak@sanmiguelcountyco.gov>

SMC Agency Referral: Land Use Code Amendment Dimension References and Footprint Definition

Nicola Kerr <nicolak@sanmiguelcountyco.gov>

Mon, Apr 6, 2026 at 2:26 PM

To: Mike Bordogna <mikeb@sanmiguelcountyco.gov>, Jarrod Biggs <jarrodb@sanmiguelcountyco.gov>, Maura Boylan <mauraf@sanmiguelcountyco.gov>, Kaye Simonson <kayes@sanmiguelcountyco.gov>, Matt Gonzales <mattg@sanmiguelcountyco.gov>, michaelnjoyce@msn.com, zdohnal@telluride-co.gov, John Wontrobski <manager@ophir.us>, Michelle Bulson <MBulson@mtnvillage.org>, Sara Owens <sowens@norwoodtown.com>

All,

Attached for your review and comment is a proposed Land Use Code Amendment to Section 5-1302 Accessory Dwelling Units, as well as Article 7 Definitions. Please return your comments to the Planning Department no later than May 5th, 2026. Let me know if you have any questions.

Thank you,

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Nicola Kerr
Associate Planner
San Miguel County Planning Department
Office: (970) 369 5438

The Planning Department has a new phone number: (970) 369 5423

www.sanmiguelcountyco.gov



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<https://co-sanmiguel-co.smartgovcommunity.com/Public/Home>



Dimension References.docx

21K

PUBLIC MEETING RECORD

County Planning Commission

Application: Amendment to San Miguel County Land Use Code – Accelerated Housing Review

Date: May 14, 2026

1. San Miguel County Land Use Code (Adopted 11/30/90) with all amendments to date (By Reference Only)
2. San Miguel County Comprehensive Development Plan (Adopted 8/3/78) with all amendments to date (By Reference Only)
3. Memorandum to the San Miguel County Planning Commission from Kaye Simonson, Planning Director, dated May 14, 2026
4. Draft Land Use Code Amendment – Accelerated Housing Review, Section 3-15 and related amendments

AGENCY COMMENTS

5. Email from Kaye Simonson, Planning Director to Referral Agencies dated April 8, 2026
6. Letter from Colorado Department of Local Affairs dated March 18, 2026

PUBLIC COMMENT

7. Email from Emily Masson received May 1, 2026
8. Email from Jolana Vankova received April 20, 2026
9. Email from Lauren Murray received May 1, 2026
10. Letter from Morgan Smith received May 5, 2026
11. Letter from Nick Farkouh received May 1, 2026
12. Letter from Pam Bennett received May 7, 2026
13. Letter from Scott Bennett received May 7, 2026
14. Letter from Shellie Duplan, Aldasoro Ranch Homeowners Company, received May 7, 2026
15. Email from Virginia Lucarelli received May 5, 2026

OTHER

None

MEMORANDUM

TO: San Miguel County Planning Commission
FROM: Kaye Simonson, AICP, Planning Director
RE: Land Use Code Amendment – Accelerated Housing Review
DATE: May 15, 2026

Background

Proposition 123, which created the Colorado State Affordable Housing Fund, was approved by Colorado voters in 2022. San Miguel County has received a Local Planning Capacity Grant through the program. One of the requirements of eligibility for additional funding is to implement a system to expedite the development review process for affordable housing, sometimes referred to as “fast-track review.” If fast-track review is adopted by June 30, the County would be eligible for grant funds that could be used toward planning for housing development. In order to maintain eligibility for the Proposition 123 program, fast-track review must be adopted by December 31.

As described by the Department of Local Affairs (DOLA), the fast track review process:

- Means qualifying projects for which the developer has requested accelerated review must be prioritized for review;
- Means a final decision must be made within 90 calendar days of the submission of a complete application;
- Must be available for housing developments in which 50% or more units are affordable; and
- Is not required for every development project or application type.

DOLA has a [Fast-Track Guidance document](#) that provides more details on the requirements. It defines Affordable Housing and Area Median Income (AMI). DOLA sets additional minimum standards for eligible projects. Rental units must be affordable to people earning 60% or less of the AMI, and for-sale units must be affordable to households earning 100% or less of the AMI. Local governments may allow fast-track review of housing projects that are available to higher AMIs. DOLA provides guidance on the types of projects that must be subject to fast-track review, as well as those that would be exempt from such review, and provides guidance for granting of extensions.

This is the first phase of the Housing Code Update. Amendments to zone districts that address barriers to housing development and facilitate the development of housing that is affordable to qualified households will be brought forward at a later date.

On March 26, a joint Planning Commission and BOCC work session was held to discuss the draft amendment. The Strategic Stakeholder Roundtable also discussed the proposed amendment on March 2 and on April 27.

Proposed Amendment

The proposed LUC amendment would create Section 3-15, Accelerated Housing Review (attached) as an addition to Article 3, Procedures. It includes Applicability, and a list of Development Processes Eligible for Accelerated Housing Review. The Accelerated Housing Review Process is described, along with possible extensions. The definition of “Affordable Housing Eligible for Accelerated Review” would be added to Article 7, Definitions.

The Accelerated Review Process would:

- Require the County to prioritize review of qualified projects and scheduling of meetings;
- If Accelerated Review is requested by an applicant, and upon submission of a complete application, decision-makers would be required to render a decision – approval, approval with conditions, or denial – within 90 days, unless extensions are granted pursuant to Section 3-1504.

The Accelerated Review Process does not:

- Change the process by which a project would be considered (Development Permit, One-step review, Two-step Review);
- Change Land Use Code requirements or development standards;
- Obligate the County to approve a project that does not meet the Land Use Code requirements or development standards;
- Obligate any developer to opt into the Accelerated Review process;
- Allow the creation of more market-rate housing in zone districts where it is limited (e.g. AHPUD, CH zone districts).

The draft Code amendment shows changes made in response to direction given at the work session and following consultation with DOLA staff. Specifically, a clarifying statement has been added stating that Accelerated Review applications shall adhere to all standards and procedures of the Code. In addition to the types of projects eligible for Accelerated Review, a list of ineligible project types has been added to Figure 3-8. Section 3-1504, Allowable Extensions, has been changed to set forth three situations in which extensions may occur: a 90-day extension at the request of the applicant; an extension for the length of time necessary to address review agency requirements; or a 30-day extension that may be requested by the County. The definition in Article 7 was also clarified to state that proof of AMI occurs at the initial lease or sale; tenants and owners would not be required to demonstrate to the SMRHA that they continue to meet the AMI limits.

Strategic Stakeholder Roundtable

At the March 2 meeting of the Strategic Stakeholder Roundtable (SSR), it was recommended that the proposed Accelerated Review Process meet the following criteria:

- Rental housing that is affordable to people earning 120% or less of the Area Median Income (AMI); or
- For-sale housing that is affordable to people earning 200% or less of the Area Median Income; and
- Housing costs are less than 30% of the household monthly income.

The SSR felt it was important to provide higher AMI thresholds than those set by DOLA, in order to address known housing needs in the community. The SSR discussed expanding the definition to allow housing costs to exceed 30% of the monthly income but ultimately that was not included in the draft because it would be inconsistent with the DOLA guidance and would continue to erode affordability.

At the April 27 meeting, seven members were in attendance. After discussion of the proposed Code amendment two members were in favor of adoption, while five members were opposed. In general, those opposed felt Accelerated Review should be considered concurrent with the next set of housing code updates. Other concerns that were discussed that included whether it was possible to limit the size of projects that would be eligible for Accelerated Review.

Public Noticing

The meeting agenda and proposed Amendment was published on the County website. An email was also sent to all people who had expressed an interest in the proposed amendment.

Referral Agencies

The proposed Land Use Code text amendment was sent to the County Manager, County Attorney, County Deputy Manager, County Building Official, County Housing Coordinator, Town of Mountain Village, Town of Norwood, Town of Ophir, Town of Sawpit, and Town of Telluride. Additionally, it was sent to Bright Futures, Rural Homes Project, San Miguel Regional Housing Authority, Telluride Association of Realtors, Telluride Foundation, Telluride Institute, Telluride R-1 School District, Telluride Housing Authority, Telluride Ski & Golf, and Strategic Stakeholders Roundtable members.

As of the writing of this report, no referral comments have been received.

The draft Land Use Code amendment was also provided to the Colorado Department of Local Affairs for a courtesy review prior to the March work session. Staff also met with DOLA staff to address some of their questions and comments. The draft was revised to conform with DOLA's recommended policies regarding extensions.

Public Comments

As of the writing of this report, nine people have provided comments. All were in

opposition to the adoption of the proposed Code amendment and stated that consideration of the Code amendment for Accelerated Review should not occur prior to consideration of other Code amendments. Several also stated that they felt there should be limits on the size of projects allowed to use Accelerated Review.

Review Standards

Review Standards for Land Use Code Amendments are contained in LUC Section 5-1802 and state, "Land Use Code Amendments may be initiated by the County or by persons who are residents of, or own property in, San Miguel County subject to compliance with the following standard." This amendment was initiated by the County Planning Director.

The only review standard, LUC Section 5-1802 A., states "Land Use Code Amendments shall be drafted in a form consistent with the organizational format and style of the code." The proposed amendment has been drafted in the format and style of the code.

In addition, Section 1-4, Purposes of the Land Use Code, should be considered.

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To implement the policies of San Miguel County regarding land use and development, housing, growth and related issues, as adopted and amended from time to time.

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To combine the regulation of all aspects of land use and development and the use of land and natural resources into a common system of administration and regulation.

1-404 Simplify the Land Use Regulatory Process

To simplify the application and review process for such regulatory system.

1-405 Protect Health, Safety and Welfare

To protect the health, safety and public welfare of San Miguel County.

Sample Motion:

I move to recommend to the Board of County Commissioners to adopt amendments to San Miguel County Land Use Code to add Section 3-15 Accelerated Housing Review and with related amendments to Section 3-202F and Article 7 Definitions, as presented, based on the finding that the proposed amendment complies with the standards of Land Use Code Section 5-1802, Land Use Code Amendments, and is consistent with Land Use Code Section 1-4, Purposes of the Land Use Code.

SAN MIGUEL COUNTY LAND USE CODE

Accelerated Housing Review

(The following section is new in its entirety. Red text indicates changes made following the March 26 work session.)

SECTION 3-15: ACCELERATED HOUSING REVIEW

3-1501 Generally

In accordance with C.R.S. 29-32-105 (2) the County is required to provide an Accelerated Housing Review process (ninety (90)-day review) for projects in which fifty percent (50%) or more of the units meet the requirements of Section 3-1502 Applicability.

Additionally, Accelerated Housing Review applications shall adhere to all standards and procedures set in Article 3, Article 4, and Article 5 of this Code.

3-1502 Applicability

Projects that include development applications as identified in Figure 3.8 are eligible for Accelerated Housing Review process if they meet the following criteria:

- 3-1501A. Rental housing at or below one hundred twenty percent (120%) Area Median Income (AMI); or
- 3-1501B. For-sale housing at or below two hundred percent (200%) AMI; and
- 3-1501C. Costs less than thirty percent (30%) of household monthly income.

FIGURE 3.8

Development and Land Use Applications Eligible for Accelerated Housing Review

- Development Permit
- Building Permit
- Variance
- Special Use Permit
- Planned Unit Development Amendment
- Construction or engineering documents that may be required in the types of applications listed above
- Modifications of development permit, variance, and/or required construction or engineering documents following initial approval of a project with Affordable Housing Eligible for Accelerated Housing Review

Development and Land Use Applications Ineligible for Accelerated Housing Review

- Preliminary or Final Subdivision
- Comprehensive Plan Amendment
- Appeals
- Planned Unit Development or Amendment that includes Rezoning or Subdivision

- Permits related to non-residential use
- Construction or engineering drawings that are not required as part of the Development and Land Use Application types listed herein

3-1503 Accelerated Housing Review Timeframe

Accelerated Housing Review applications shall be given priority review and decision making over other projects in the development or land use review process, as outlined in Article 3, and approved, approved with conditions, or denied within ninety (90) days of determination of completeness per Section 3-202C Determination of Application Completeness. The accelerated housing review period shall conclude upon the final action of the decision-making body. Applications shall be subject to allowable extensions per Section 3-1504.

- A. In the context of this Section, priority means giving preference to review of applications eligible for Accelerated Housing Review over review of non-eligible applications per the following:
 - I. If an application is continued by the decision-making body, the applicant shall be given preference on the next available hearing date.
 - II. Each application type indicated in Figure 3.8 shall be treated as a separate application, each with its own ninety (90) day review timeframe.
 - III. To the extent possible and reasonable, the applicant may be given concurrent review and approval of separate permits and applications for the same development. In such case, the total timeframe for the complete application package would meet the requirements of this section.
- B. An applicant may request an extension to the ninety (90) day Accelerated Housing Review, with a written request to the Planning Director per section 3-1504 Allowable Extensions.
- C. An applicant may opt out of the Accelerated Housing Review process at any time by submitting a written request to the Planning Director, at which point review of the project will no longer be given priority or preference over other non-eligible applications.
- D. All relevant review standards of Article 5 shall apply to projects being considered through the Accelerated Housing Review process.

3-1504 Allowable Extensions

- A. At the request of the applicant, a one-time ninety (90)-day extension may be provided for the applicant to address comments on the application from an agency that has approval authority like a service provider or state agency. The County Planning Director shall respond to the applicant in writing within five (5) business days acknowledging the extension request. **Such extension shall be added to the end of the original ninety (90) -day period.**
- B. **To allow time to comply with a state law or court order, or to allow for a review period by an agency that requires review and approval of the project, the County may grant an extension until such a time as the conflict with state law or court order is resolved, or until review by an agency is complete and the applicant has had sufficient time to make any changes to the application as a result of that review. Upon resolution of the cause for the extension pursuant to this subsection and submittal of any amended application materials, the ninety (90) -**

- day review period or any extension period granted pursuant to subsections A or C of this Section shall resume.
- C. The County may request additional information or revisions to an application, extending the ninety (90) -day timeframe by thirty (30) days once additional information or revisions are received by the County. The County shall notify the applicant of the intent to extend the process. The applicant shall respond to the County within five (5) business days acknowledging the extension notice. Failure to respond within five (5) business days represents an acknowledgement of the extension notice. Such extension shall be added to the end of the original ninety (90) -day period.

3-1505 Affordable Housing Defined

For the purpose of this section, Affordable Housing Eligible for Accelerated Housing Review is defined as per Article 7.

Additional Sections to be Amended Accordingly:

(Additions are shown as underlined. Deletions are shown in ~~strike-through~~. *** indicates text preceding and/or following the amended text that is not shown and is unchanged. Red text indicates changes made following the March 26 work session.)

Section 3-2 Overview of Development Review Process

3-202F Review of Application

- V. Affordable Housing eligible for Accelerated Housing Review, as defined in Article 7 – Definitions, shall be reviewed pursuant to Section 3-15 Accelerated Housing Review, as well as any other applicable sections of the Land Use Code.

Article 7 – Definitions:

Affordable Housing Eligible for Accelerated Housing Review

Residential dwelling units that are permanently deed restricted to be affordable to qualifying households. AMI ranges are tied to the initial qualification for sale or rent of the residential dwelling unit. Qualifying households are those who earn less than one hundred twenty percent (120%) of the Area Median Income for renters, and less than two hundred percent (200%) of the Area Median Income for ownership, as determined annually by the Department of Housing and Urban Development (HUD) and adjusted for household sizes. Units that cost less than thirty percent (30%) of a qualifying household's gross monthly income are considered affordable. Costs include, but are not limited to, rent, mortgage payments, taxes, utilities, and insurance as applicable.



Kaye Simonson <kayes@sanmiguelcountyco.gov>

Land Use Code Amendment - Accelerated Housing Review

1 message

Kaye Simonson <kayes@sanmiguelcountyco.gov>

Wed, Apr 8, 2026 at 4:49 PM

To: SMC Planning <planning@sanmiguelcountyco.gov>

Bcc: kathleen@brightfuturesforchildren.org, KOTO News <news@koto.org>, paul@ruralhomesproject.co, Carmen Warfield <carmenw@sanmiguelcountyco.gov>, Galena Gleason <galenag@sanmiguelcountyco.gov>, Anne Brown <anneb@sanmiguelcountyco.gov>, Lance Waring <lancew@sanmiguelcountyco.gov>, Maura Boylan <mauraf@sanmiguelcountyco.gov>, Nancy Willis <nancyw@sanmiguelcountyco.gov>, Mike Bordogna <mikeb@sanmiguelcountyco.gov>, Matt Gonzales <mattg@sanmiguelcountyco.gov>, Drea Araiza <dreaa@sanmiguelcountyco.gov>, Jarrod Biggs <jarrodb@sanmiguelcountyco.gov>, Pamela Shifrin <pamela@smrha.org>, Robyn Pale <evp@telluriderealtors.net>, Jason Corzine <jason@telluridefoundation.org>, April Montgomery <april@telluridefoundation.org>, Elaine Demas <Elaine@telluridefoundation.org>, info@tellurideinstitute.org, John Pandolfo <jpandolfo@telluride.k12.co.us>, Cheryl Miller <horseranches@gmail.com>, Telluride Daily Planet <editor@telluridenews.com>, dtapson@telluride-co.gov, Scott Pearson <spearson@mtnvillage.org>, Michelle Bulson <MBulson@mtnvillage.org>, Amy Ward <award@mtnvillage.org>, sowens@norwoodtown.com, John Wontrobski <manager@ophir.us>, Andy Ward <mayor@ophir.us>, Mike Kimball <michaelnjoyce@msn.com>, Lance McDonald <LMcDonald@telluride-co.gov>, James Van Hooser <jamesv@telluride-co.gov>, Zoe Dohnal <zdothnal@telluride-co.gov>, Kevin Geiger <kgeiger@telluride-co.gov>, Kristen Clothier <kclothier@telluride.gov>, terrico@telluride-co.gov, John Miller <johnmiller@tellurideski resort.com>, katherineb@aim.com, Amy Levek <arlevek@gmail.com>, "jsoules@ehspartners.com" <jsoules@ehspartners.com>, Stefanie Solomon <stefsolomon21@gmail.com>, "petej@hermitageland.com" <petej@hermitageland.com>, "annatelluride@gmail.com" <annatelluride@gmail.com>, Danny Craft <dannycraft@alpinebank.com>, Nick Farkouh <nick@basebuilding.com>, Nina Kothe <nkothe56@gmail.com>, "kathrine@lawson.org" <kathrine@lawson.org>, "kathrine@lawsonhill.org" <kathrine@lawsonhill.org>, Daranyi/Indian Ridge Farm <daranyi@rmi.net>, Lee Taylor <lee@tellword.com>, Hallie Bevan Simpson <hallie.bevan@gmail.com>, Drew Nelson <dnelson@mtnvillage.org>, JOLANA VANKOVA <jolanavaneck@yahoo.com>, Lauren Murray <murraypartners@gmail.com>, msaftler@montrose.net, pam@aldasoro.com, Emily Masson <emasson@mac.com>, Scott Bennett <scott@telluride-home.com>, Shellie Duplan <director@aldasororanch.com>, Sophie Frankenburg <sfrankenburg@logansimpson.com>, Jen Gardner <jgardner@logansimpson.com>, Robin Adams <radams@logansimpson.com>, Fletcher Otwell <fletcher@stellarair.pro>, Ian Bald <ibald841@gmail.com>, Matt Bayma <mbayma08@gmail.com>, Josselin Lifton-Zoline <josselin.lz@gmail.com>

The San Miguel County Planning Commission will be considering the draft Accelerated Housing Review Land Use Code Amendment on Thursday, May 14, 2026. The meeting will be held in person at the Norwood Sheriff's Annex, 110 Summit Street, and via Zoom. The Board of County Commissioners is expected to hear the proposed amendments on June 3, 2026.

The draft regulations (attached) and related materials are available for review online at <https://www.sanmiguelcountyco.gov/882/Housing-Code-Update>.

This is the first phase of the Housing Code Update. The proposed Code amendment establishes a preferential (accelerated) review process for projects that meet certain standards of affordability. Basically, it stipulates that qualified projects must be reviewed within a 90-day period and may be given prioritized scheduling. It does not change any dimensional standards, density, or other procedural requirements. Amendments to other parts of the Land Use Code, including zone districts, that address barriers to housing development and facilitate the development of housing that is affordable to qualified households will be brought forward at a later date.

Proposition 123, which created the Colorado State Affordable Housing Fund, was approved by Colorado voters in 2022. San Miguel County has received a Local Planning Capacity Grant through the program. One of the requirements of eligibility for additional funding is to implement a system to expedite the development review process for affordable housing, sometimes referred to as "fast-track review."

Your review comments are very important to us and will help the Planning Commission and Board of County Commissioners make informed decisions. All comments received in response to this request for review will be forwarded to the Planning Commission and Board of County Commissioners, and will be included in their meeting packets. If you wish to discuss the project with staff prior to submitting final comments, please indicate in your email(s) that your comments and questions are preliminary.

Please provide your review comments by May 1, 2026 to the Planning Department at planning@sanmiguelcountyco.gov. Comments received by noon on Thursday, May 7 will be included in the meeting packet, but staff may not be able to address any issues that are raised. Comments received after May 7 but by noon on Tuesday, May 12 will be forwarded to the Planning Commission as a packet supplement, with the understanding that Commissioners may not have an opportunity to fully review new information before the meeting.

Pass this on to others in your organization who may have an interest in the proposed Land Use Code Amendment. If you have several people within your organization reviewing the draft amendment, we ask that you consolidate all of your comments into a single response. If you are not the correct contact person, let us know so we can update our list.

We appreciate your participation in this important project. Contact the Planning Department if you have any questions. Thank you.

This referral and request for comments is provided to local, state, and federal agencies, districts, and organizations pursuant to C.R.S. § 30-28-136.

This proposed draft is also provided to other parties who have expressed an interest in the proposed amendment.

--

Kaye Simonson, AICP
Planning Director
San Miguel County Planning Department
Main Office: (970)369-5423
Direct Line: (970)369-5436
Cell: (970)729-9929
www.sanmiguelcountyco.gov



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Accelerated Housing Review LUCA Draft v2_040828.pdf
154K



Fast Track Courtesy Review

To: Drea Araiza, Housing Specialist, San Miguel County
From: Robyn DiFalco, Planning Capacity Manager, DOLA
Cc: Jason Schaefer, Land Use Planning Specialist, DOLA
Becky Brazell, Proposition 123 Community Support Specialist, DOLA
Date: 3/18/2026
Re: **San Miguel County Prop 123 Fast Track Courtesy Review**

This memorandum includes a courtesy technical review from DOLA's Community Development Office and the Prop 123 Community Support Team and is based on our knowledge and experience with the statutory requirements for expedited review policies in Proposition 123. This review is intended to serve as technical guidance and is not a legal determination, nor does it guarantee approval by the Proposition 123 Compliance Review Team. DOLA recommends that you consult with your municipal attorney for their opinion regarding any considerations raised in this technical review.

Executive Summary

We have completed a courtesy review of San Miguel County's Draft Accelerated Housing Review policy to assess compliance with Proposition 123 fast-track review requirements under C.R.S. 29-32-101(2) and 29-32-105(2) et seq.

Overall Assessment: We found that the draft policy largely addresses the expedited review requirements found in Proposition 123. However, we have identified some needed clarifications along with recommendations. These are summarized below with more detailed feedback provided in the Detailed Findings section below that. We hope this level of feedback is clear and helpful. Please do not hesitate to contact us if you have any questions. We are also happy to provide a follow-up courtesy review of a revised draft.

Required Revisions for Compliance

DOLA will not be able to verify policy compliance, unless the following are addressed:

- No required revisions identified.

Clarifications Needed in order to Determine Compliance

DOLA will not be able to verify policy compliance, unless the following are addressed:



- Figure 3.8 lists application processes that are eligible for expedited review. We noticed that site plan applications are not included. Please confirm that this is due to the County not having a site plan application or that it is included in another application type such as the development permit. Refer to [Section 2.1C](#) of DOLA's Fast Track Review Guidance for more information.

Strongly Recommended

- Consider revising the policy language related to extensions, taking into consideration the new legal interpretation in DOLA's updated guidance on allowable extensions.
- Consider revising the eligibility criteria in your local policy to allow any housing development meeting the affordability requirements in statute to be eligible for expedited review, not only those with a formal affordability mechanism.

Additional Comments

- DOLA commends San Miguel County's policy for including a definition of affordable housing and criteria for a project to qualify for expedited review that appears to meet and exceed what's required by Proposition 123.
- We also applaud the County for including recommended best practices and strategies such as enabling concurrent review of different application types and prioritizing qualifying affordable housing applications.

Please review the detailed findings section below for more information.

Detailed Findings

Extensions

Proposed Local Policy Language: The draft policy (Section 3-1504) reflects DOLA's original interpretation of the allowable extensions (published in 2024) but not DOLA's recently revised interpretation that was published in September 2025.

Requirement: [C.R.S. 29-32-105\(2\)\(b\)](#) *A local government's or tribal government's fast-track approval process may include an option to extend the review period for an additional ninety days at the request of a developer, for compliance with state law or court order, or for a review period required by another local government, tribal government, or agency, within the local government or tribal government or outside, for any component of the application requiring that government's or agency's approval.*

Recommended Action: DOLA recommends reviewing the new interpretation of allowable extensions in [C.R.S. 29-32-105\(2\)\(b\)](#) particularly when an extension is needed to comply with



state law, a court order or for required external agency review. Please see the [FAQ page of the Fast Track Guidance website](#), particularly question [D1. Applicant-Requested and Externally Required Extensions \(2b\)](#) as well as our [legal guidance on extensions](#).

Affordability Mechanisms

Proposed Local Policy Language: Article 7 (definitions) of the draft local policy limits fast track review to only housing projects that are permanently deed restricted. The eligibility criteria proposed in the local policy could be considered more restrictive than statute, thereby denying fast track review to an applicant whose project may otherwise qualify for fast track.

Requirement: In the context of expedited review ([C.R.S. 29-32-105\(2\)](#)), the statute is silent on affordability protection mechanisms or terms of affordability (i.e., does not require or specifically prohibit a legally binding affordability mechanism for any term length). DOLA recognizes that an applicant whose housing project meets the required AMIs without formal affordability mechanisms may expect to be expedited based on the definition in statute. See [Section 2.1A](#) and [Section 6.1B](#) of DOLA's Fast Track Review Guidance for more information.

Recommended Action: DOLA recommends considering whether the eligibility criteria in your local policy should allow any housing development meeting the affordability requirements in statute to be eligible for expedited review. However, we understand the County's attorney may determine the current definition is defensible because it is not prohibited by the statute.

Technical Assistance & Next Steps

DOLA staff are happy to review any updates or revisions to your policy. We are also available to provide one-on-one technical assistance or meet with your team to discuss any of the items addressed in this memo. You can either [schedule a meeting](#) or [join us for weekly office hours](#) every Wednesday from 9:30 - 10:30 a.m. Drop in anytime during this one-hour window to ask a question.

After incorporating any revisions, and following formal adoption of the new policy, **please submit documentation through the [Fast Track submission portal](#)** for formal review and compliance verification.



COLORADO
Department of Local Affairs

Statement of Appreciation

Thank you for your efforts to advance housing affordability in Colorado. Feel free to email me at robyn.difalco@state.co.us or call me directly at 720-682-5202 with any questions.



Nicola Kerr <nicolak@sanmiguelcountyco.gov>

Land Use Code Amendment - Accelerated Housing Review

'Emily Masson' via SMC Planning <planning@sanmiguelcountyco.gov>

Fri, May 1, 2026 at 10:55 AM

Reply-To: Emily Masson <emasson@mac.com>

To: kayes@sanmiguelcountyco.gov, planning@sanmiguelcountyco.gov

Please forward to the County Planning Commission:

Thank you for the opportunity to comment on the revised Accelerated Housing Review code language. Quite frankly, Accelerated Housing Review is not a good idea in general. While we do need to make up for our deficit of home options for regular, local residents, giving preferential treatment to large scale high density projects with a 1:1 ratio of free market to deed restricted units will only exacerbate the existing crisis. Please consider not adopting this amendment at this time.

The amendment, the way it is drafted, does not have any safeguards regarding size, scope, or magnitude. The amendment itself will not result in funding grants to build actual homes that are attainable for ordinary people, it does not need to be adopted by the end of June which coincides with a \$130,000,000 (40%) cut to the Prop 123 funds allocated for the actual building of homes. And the only grant funding available to public entities are for land banking and those funding mechanisms have now been reduced to last priority by the state.

Most importantly, the County appointed SSR committee is not in favor of this new code. Please respect the process that you all set up and listen to the SSR committee.

I appreciate the fact that we are a representative government and that our county appointed SSR committee has spent many hours working diligently to analyze the land use code and has come to the conclusion that adopting accelerated review is not necessary at this time. In fact, it would be premature to adopt a new Accelerated Housing Review amendment before the SSR finishes the full review of our county land use code.

Please allow the SSR to finish this very important work before throwing a preferential high density, massive scale, fast-track review amendment with no safeguards "wrench" in the works. Our region, our people, our scarce resources depend on your leadership to approach all matters in your usually thoughtful, deliberative approach.

Respectfully,
Emily Masson
Telluride resident

----- Original Message -----

[Quoted text hidden]

_This referral and request for comments is provided to local, state, and federal agencies, districts, and organizations pursuant to C.R.S. __§ __30-28-136._

This proposed draft is also provided to other parties who have expressed an interest in the proposed amendment.

--

Kaye Simonson, AICP

Planning Director
San Miguel County Planning Department
Main Office: (970)369-5423

Direct Line: (970)369-5436

Cell: (970)729-9929

www.sanmiguelcountyco.gov [1]

Click [HERE](#) [2] to go to the SmartGov public portal to apply for permits, check permit status, or view permit history.

San Miguel County is committed to providing equitable access to our services and communications. To request an accommodation or modification, please call 970-728-4382, or email accessibility@sanmiguelcountyco.gov

Links:

[1] <http://www.sanmiguelcountyco.gov/>

[2]

<https://co-sanmiguel-co.smartgovcommunity.com/ApplicationPublic/ApplicationHome>
<Accelerated Housing Review LUCA Draft v2_040828.pdf>



Kaye Simonson <kayes@sanmiguelcountyco.gov>

Fw: Land Use Code Amendment - Accelerated Housing Review

1 message

JOLANA VANKOVA <jolanavanek@yahoo.com>

Mon, Apr 20, 2026 at 10:44 PM

To: "planning@sanmiguelcountyco.gov" <planning@sanmiguelcountyco.gov>, Kay Simonson county planner
 <kayes@sanmiguelcountyco.gov>

Dear Planning Commission, and County Commissioners,

As you are currently taking up details of the Accelerated Housing Review, I would like to encourage you to think out of the box. Unlike area down the stream of rivers in Colorado, our area is the "headwaters of the United States".

If water, the key element why most cities around the world were settled around, if our water does not come down to us in a form of snow, the best, since it acts as a storage of melting into water, or rain, we are in a big trouble.

Current watering restrictions here in Mountain Village illustrate that WATER is at premium in our drought plagued area.

I am not sure why the state legislature approved accelerated population growth program, perhaps they in their areas have access to secret water resources, good for them if they do. We should not get lured by a relatively paltry payments from state that currently is broke, to start dangerous path to unlimited growth. Each project approved, would rise the percentage of growth. Three percent would suddenly become 10% of the original and so on, basic exponential growth, is a disastrous vision of our future.

We here do not have that luxury. If water does not come from the sky, it is not available. We often feel when it rains or snows for a few days, the water situation is fixed.

Far from it. As Norwood is keenly aware, we are in a long term water shortfall. With drought comes danger of fires.

Our forester knows that, and is concerned if God forbid fires came through. Norwood is wondering how to resolve this long term challenge, and related issue of public safety, life and death, high insurance rates due to higher fire risk, many home owners have LOST THEIR HOME INSURANCE due to that.

Accelerated approval for any projects but single family homes seems to be super unwise.'

A financial incentive the state might be offering might be tempting, but it reeks instead in longer term perspective of dangerous growth acceleration. If we barely have enough water for current needs, how would starting fast population growth be a ethically justified in face of the current residents?

Water, water coming from the sky in form of snow and rain is fickle, and does not like to run on 'banker's time'. Committing ourselves to growth goes against common sense, and it is reckless.

I urge you to think deeply, vote wisely. Unless you are planning to move out of county soon, we will be seeing you on the streets and either thanking you, or cross the street.

Respectfully,

Jolana Vanek

county resident for 30 years,

4/21/26, 9:10 AM

San Miguel County Mail - Fw: Land Use Code Amendment - Accelerated Housing Review

watching some good and many unwise decisions made
over the 30 years



Accelerated Housing Review LUCA Draft v2_040828.pdf

154K



Nicola Kerr <nicolak@sanmiguelcountyco.gov>

Land Use Code Amendment - Accelerated Housing Review

Lauren Murray <murraypartners@gmail.com>

Fri, May 1, 2026 at 8:58 PM

To: planning@sanmiguelcountyco.gov

Dear Commissioners,

I am writing to share concerns about the timing of the proposed Accelerated Housing Review amendment and to encourage a more deliberate approach. Approving Accelerated Housing Review at this stage is premature. The SSR has carefully considered this amendment and, by supermajority vote, recommended against moving forward prior to completing its broader review and revision of the Land Use Code.

Respecting that process will help ensure that any future changes are well-integrated, appropriately scoped, and reflective of community input. As currently drafted, the amendment lacks clear safeguards related to size, scope, scale, and rezoning. Introducing a fast-track review mechanism ahead of a full code update may lead to unintended consequences.

Please respect the process you created. Allow the SSR Committee to complete its work on LUC before prematurely adopting a fast-track amendment for a potential grant of up to \$45,000, that is neither guaranteed nor significant when weighed against the long-term consequences of a premature decision. Adopting this amendment now could shape land use outcomes in lasting ways before the code itself has been properly updated.

I urge you to abide by the SSR Committee's recommendation and not adopt the amendment at this time. Let the committee you appointed complete its mission.

Sincerely,

Lauren Murray

42 Promontory Lane

Morgan C. Smith
P.O. Box 3460
Telluride, CO 81435

Dated: May 5, 2026

To: Regarding the Proposed Fast Track Amendment

As many others have pointed out, this Amendment should be rejected because it does not include any caps on the size of developments eligible for Fastrack review. I wholeheartedly agree with this view.

That said, I wanted to focus on another serious issue: the lack of coordination with the current Land Use Code (“LUC”), which renders the Fast Track Amendment extremely unclear on how it would be implemented in given situations.

The main issue is that the proposed Amendment applies to any “Development Permit” in which 50% or more is affordable housing. The problem is that there is no current design review “track” in the LUC for reviewing this development permit. The language of the Fast Track Amendment stating that all “applications shall adhere to all standards and procedures set in Article 3, Article 4, and Article 5” sounds comprehensive, but it is not.

Nowhere in these article sections is the process for this Fast Track review defined, whether it be Administrative only, one, two, or five-steps.

The Master Gate: Figure 3-1

Every land use application in San Miguel County begins with Figure 3-1 (Article 3), the master table of “Land Use Activities and Review Procedures.” It lists specific activities and indicates which review procedure applies to each: Administrative (Section 3-4), One-Step Planning Commission (Section 3-5), Two-Step (Section 3-6), or Five-Step (Section 3-7).

Figure 3-1 includes specific entries for minor residential items (for example, “Caretaker, Accessory Dwelling, and Secondary Dwelling Units” are listed and assigned to Administrative Review). *But Figure 3-1 contains no entry for multi-unit affordable housing development permits, regardless of size.* It is simply absent from the table. As such, there is no defined “track” for reviewing any such project that is clearly applicable to this Fast Track process.

The only thing close to a review for a multi-unit affordable housing development is the “Five Step” review, which applies when a subdivision and/or a new PUD is involved. Both of these are excluded from Fast Track review under the Amendment because they could not be completed within 90 days. This leaves no defined “Track” for the procedure and process applicable to the proposed Amendment.

The Cross-Reference Table: Figure 4-1

Article 4's Figure 4-1 performs the same function, listing application types and the procedure section that governs each. Under Group II "Other Development Applications," Figure 4-1 lists two relevant entries:

"Accessory Dwelling Unit" → Procedure Section 3-4 (Administrative Review)
"Affordable Housing Unit" → Procedure Section 3-4 (Administrative Review)

Figure 4-1 assigns exactly one "Affordable Housing Unit" (singular) to Administrative Review. There is no entry anywhere in Figure 4-1 for a multi-unit affordable housing complex — not for 5 units, not for 50 units, not for 1,140 units.

Article 5 – Zoning and Standards

Article 5 sets the allowable development standards for each zone district. This article is meant to connect through a single structural link in Figure 3-1 that specifies exactly which procedure (i.e., 1-, 2-, or 5-step process) will be applied to any specific type of development in the zone. In other words, a development permit for grading is a simple Administrative-only review in any zone section, but developing a hotel is a much longer process in any zone.

The only sections that contemplate a multi-unit development of affordable housing are in Sections 5-302 (for High Density), 5-303 (for Medium Density), and the CH Zone overlay. Starting with Sections 5-302 and 303, they unambiguously state: "All development proposed within the [HD/MD] Zone District, *except for proposed development of uses allowed by right*, shall be reviewed pursuant to the Planned Unit Development (PUD) procedure." This directly ties to Figure 3-1, which states that all reviews of subdivision applications and Planned Unit Developments require a five-step review. Therefore, if any developer seeks to build more than a single ADU in an HD/MD zone, the LUC requires a five-step process.

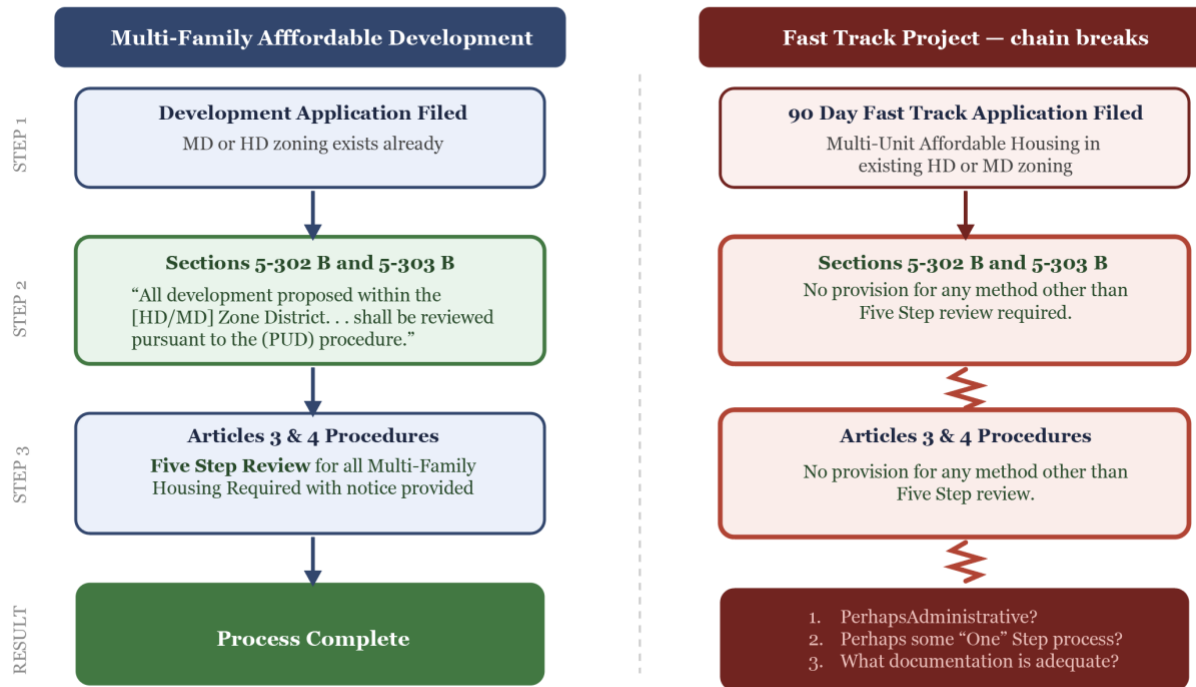
Under the CH Zone, any development application for affordable housing on a lot of under five acres is a one-step process, but any development on a lot over five acres is a two-step development process. So the CH Zone might provide a "Track" if the development is less than five acres, but it is highly unlikely that a project of more than five acres in an existing zone district can be

Therefore, other than the CH zone for development applications under five acres, section five is entirely silent as to how a 90-day Fast Track would be implemented.

Further, there is no clarity regarding what documents will be required under this Fast Track amendment for projects of any size. Since anything beyond a single affordable ADU development used to be, and still is, covered under the LUC as a five-step process, will the documents required for approval be the final documents required under the final step? No one knows.

The following graphic shows the problem between a procedure for multi-unit affordable housing delineated in the LUC sections and the Fast Track proposal, which is not.

Why LUC Articles 3, 4 & 5 Leave A Gap



Why it matters

At the risk of quoting Latin, I will do it anyway. There is a legal Latin expression: *expressio unius est exclusio alterius*, which means the expression of one thing implies the exclusion of others. *United States v. Barnes*, 222 U.S. 513 (1912). This is important in light of the LUC having no clear directives on what “Track” the “90-day Fast Track” review follows. Without any definition of this process, it arguably allows the Planning Department to decide, on an *ad hoc* (sorry, more Latin) basis, which procedure to apply to any particular application, since there is no direct expression of a required “track”, procedure, or documents required with the application.

This means it could be entirely Administrative, which would raise constitutional Due Process issues that must be addressed *in advance* through a change to the LUC, if this process will apply at all, given the current lack of any required notice or opportunity to be heard in an admin-only review.

The Fourteenth Amendment to the U.S. Constitution requires government actors to provide notice and an opportunity to be heard before making decisions that deprive a person of a protected property interest. Colorado and federal courts have consistently held that neighboring landowners have a protectable property interest in land-use decisions that affect their neighborhoods and access, particularly in large-scale developments. This requirement, at a minimum, mandates notice and an opportunity to be heard at a public hearing.

The current LUC does not provide any required notice to landowners, either before or after a development application, and administrative review is the only process. 3-202D states plainly: “Administrative reviews will be processed by the staff without a hearing.” Additionally, section 3-903 confirms that the notice applies only to non-administrative determinations.

Conclusion

The point of the above is *not* that these issues cannot be addressed in the LUC in a fair and appropriate manner. The point is that these issues *have not yet been addressed*, which means this Amendment is far too problematic, given the current state of the LUC, to adopt at this time.

Rather, the entire point of the SRR was to take a holistic view of the LUC, which will necessarily address the issues of implementing a Fast Track Amendment, including necessary changes to the other LUC sections to make this process clear, such as (1) which decision body will review such decisions, (2) which documents are required for review, and (3) what notice and hearings will be mandated to meet the basic requirements of Due Process.

On this basis, I strongly encourage the Planning Commission to vote to deny the Amendment in its current form and to allow the SRR to continue its work to update the entire LUC at once, including a future Fast Track provision.

Sincerely,

A handwritten signature in black ink, appearing to read 'Morgan C. Smith', with a stylized flourish at the end.

Morgan C. Smith

5/1/2026

San Miguel County – County Planning Commissioners

Re: May 14, 2026 Hearing re: Accelerated Housing Review Land Use Code Amendment

Dear Planning Commissioners,

Please accept these comments in advance of the May 14, 2026 hearing to discuss the Accelerated Housing Review Land Use Code Amendment (“Fast Track Amendment”). I provide this commentary from the perspective of an SSR member who takes SSR appointment and responsibility very seriously, and who has taken to heart the County statement that the “goal of this project is to enable more housing choices while preserving community character”. I have been extremely impressed with the SSR appointees’ countless comments through the process that demonstrate their shared grasp and aptitude for achieving this balancing act.

The Tail That Wags The Dog Does Not Produce a Good End Product

In an email correspondence sent to the SSR on March 18, 2026, I stated a broader level concern regarding the nature of the June 30, 2026 deadline to adopt the Fast Track Amendment – an intermediate deadline that surprised SSR members and which has been traveling independently of the comprehensive LUC amendment deliverable goals for which the SSR has been tasked. I maintain my position that the incentive of “up to \$45,000” for adopting this amendment by June 30 seems like a case of the tail wagging the dog. Even at its maximum amount, this is a relatively insignificant grant which is already disrupting the SSR effort to make comprehensive LUC amendments that integrate properly and effectively with each other.

I realize that the policy decision to seek grant money is outside the authority of the CPC. However, by denying the Fast Track Amendment based on its potential to contradict future LUC amendments, if not detract from the overall performance of the LUC, the CPC can make a recommendation well within its authority, and can take a positive step toward correcting the policy path that has been set. In doing so, the CPC sends a message that it values a process of comprehensively, clearly, and consistently amending the LUC to produce the best end product possible. It also demonstrates the CPC’s desire to avoid the scenario where coordination and timing of a fast track process are at the discretion of County staff, causing undue and potentially inappropriate pressure and burden on Planning Commissioners when applications ultimately appear before the CPC.

Good Guardrails/Caps Make Good Neighbors

In an email correspondence sent on March 24, 2026, I shared specific, language/technical concerns in advance of the March 26, 2026 joint work session of the BOCC and CPC. In that correspondence, I provided suggested edits to address these concerns. Since that time, County staff has produced iterations of drafts, the latest of

which is attached to this correspondence¹, and which does address all but one suggested edit. It is the absence of this one suggested paragraph that causes great consternation.

The Fast Track Amendment needs some sort of language which places a cap on the number of units per development application that are deemed eligible for fast-track review. Beyond stating this in writing and verbally on multiple occasions, I formally expressed this opinion by casting my SSR vote to recommend denial of the Fast Track Amendment by the CPC. My vote contributed to the super majority of SSR members that recommend denial – a super majority required to qualify for a formal SSR recommendation to the CPC.

Reiterating, the sticking point and “deal breaker” is the absence of a guardrail to prevent the Fast Track Amendment from being applicable to a housing project of ANY size. Whether this guardrail is a cap on the number of units in an application, overall square footages, or some other creative way to mitigate massive, regionally consequential projects from being reviewed via fast track, the amendment if adopted in the proverbial vacuum must include some mechanism to limit the scope and magnitude of projects that are eligible for fast track review. Irrespective of the reasons for “why” (State influence), without the guardrail, the Fast Track Amendment is unacceptable and contrary to the goals of the SSR process.

Summarizing, I urge the CPC to respect the efforts, perspective, and expertise of the SSR, and to recommend to the BOCC a denial of the Fast Track Amendment, if need be, solely based on the consequential omission of the “caps” guardrail – something clearly within the authority of the CPC. However, I also urge the CPC to recommend that the SSR be allowed to continue the comprehensive LUC amendments for which members have been tasked – amendments intended to satisfy the requirements of Proposition 123 (i.e., “enable more housing choices”) while simultaneously honoring the sentiments of a supermajority (or more) of the SSR (i.e., “while preserving community character”).

Thank you,



Nick Farkouh

¹ The attached Fast Track Amendment draft was provided to the SSR via email on April 24, 2026 by County Housing Specialist, Drea Araiza. This is the latest version, which differs from the version Planning Director Simonson screen shared during the April 27 SSR meeting. Please cross check to ensure that the attached version is the version that is presently before the CPC.

SAN MIGUEL COUNTY LAND USE CODE

Accelerated Housing Review

(The following section is new in its entirety. Red text indicates changes made following the March 26 work session.)

SECTION 3-15: ACCELERATED HOUSING REVIEW

3-1501 Generally

In accordance with C.R.S. 29-32-105 (2) the County is required to provide an Accelerated Housing Review process (ninety (90)-day review) for projects in which fifty percent (50%) or more of the units meet the requirements of Section 3-1502 Applicability.

Additionally, Accelerated Housing Review applications shall adhere to all standards and procedures set in Article 3, Article 4, and Article 5 of this Code.

3-1502 Applicability

Projects that include development applications as identified in Figure 3.8 are eligible for Accelerated Housing Review process if they meet the following criteria:

- 3-1501A. Rental housing at or below one hundred twenty percent (120%) Area Median Income (AMI); or
- 3-1501B. For-sale housing at or below two hundred percent (200%) AMI; and
- 3-1501C. Costs less than thirty percent (30%) of household monthly income.

FIGURE 3.8

Development and Land Use Applications Eligible for Accelerated Housing Review

- Development Permit
- Building Permit
- Variance
- Special Use Permit
- Planned Unit Development Amendment
- Construction or engineering documents that may be required in the types of applications listed above
- Modifications of development permit, variance, and/or required construction or engineering documents following initial approval of a project with Affordable Housing Eligible for Accelerated Housing Review

Development and Land Use Applications Ineligible for Accelerated Housing Review

- Preliminary or Final Subdivision
- Initial Zoning and Rezoning
- Comprehensive Plan Amendment
- Appeals

- Planned Unit Development or Amendment that includes Rezoning or Subdivision
- Permits related to non-residential use
- Construction or engineering drawings that are not required as part of the Development and Land Use Application types listed herein

3-1503 Accelerated Housing Review Timeframe

Accelerated Housing Review applications shall be given priority review and decision making over other projects in the development or land use review process, as outlined in Article 3, and approved, approved with conditions, or denied within ninety (90) days of determination of completeness per Section 3-202C Determination of Application Completeness. The accelerated housing review period shall conclude upon the final action of the decision-making body. Applications shall be subject to allowable extensions per Section 3-1504.

- A. In the context of this Section, priority means giving preference to review of applications eligible for Accelerated Housing Review over review of non-eligible applications per the following:
 - I. If an application is continued by the decision-making body, the applicant shall be given preference on the next available hearing date.
 - II. Each application type indicated in Figure 3.8 shall be treated as a separate application, each with its own ninety (90) day review timeframe.
 - III. To the extent possible and reasonable, the applicant may be given concurrent review and approval of separate permits and applications for the same development. In such case, the total timeframe for the complete application package would meet the requirements of this section.
- B. An applicant may request an extension to the ninety (90) day Accelerated Housing Review, with a written request to the Planning Director per section 3-1504 Allowable Extensions.
- C. An applicant may opt out of the Accelerated Housing Review process at any time by submitting a written request to the Planning Director, at which point review of the project will no longer be given priority or preference over other non-eligible applications.
- D. All relevant review standards of Article 5 shall apply to projects being considered through the Accelerated Housing Review process.

3-1504 Allowable Extensions

- A. At the request of the applicant, a one-time ninety (90)-day extension may be provided for the applicant to address comments on the application from an agency that has approval authority like a service provider or state agency. The County Planning Director shall respond to the applicant in writing within five (5) business days acknowledging the extension request. **Such extension shall be added to the end of the original ninety (90) -day period.**
- B. **To allow time to comply with a state law or court order, or to allow for a review period by an agency that requires review and approval of the project, the County may grant an extension until such a time as the conflict with state law or court order is resolved, or until review by an agency is complete and the applicant has had sufficient time to make any changes to the application as a result of that review. Upon resolution of the cause for the extension pursuant to this**

- subsection and submittal of any amended application materials, the ninety (90) - day review period or any extension period granted pursuant to subsections A or C of this Section shall resume.
- C. The County may request additional information or revisions to an application, extending the ninety (90) -day timeframe by thirty (30) days once additional information or revisions are received by the County. The County shall notify the applicant of the intent to extend the process. The applicant shall respond to the County within five (5) business days acknowledging the extension notice. Failure to respond within five (5) business days represents an acknowledgement of the extension notice. **Such extension shall be added to the end of the original ninety (90) -day period.**

3-1505 Affordable Housing Defined

For the purpose of this section, Affordable Housing Eligible for Accelerated Housing Review is defined as per Article 7.

Additional Sections to be Amended Accordingly:

(Additions are shown as underlined. Deletions are shown in ~~strike-through~~. *** indicates text preceding and/or following the amended text that is not shown and is unchanged. **Red text** indicates changes made following the March 26 work session.)

Section 3-2 Overview of Development Review Process

3-202F Review of Application

- V. Affordable Housing eligible for Accelerated Housing Review, **as defined in Article 7 – Definitions**, shall be reviewed pursuant to Section 3-15 Accelerated Housing Review, **as well as any other applicable sections of the Land Use Code.**

Article 7 – Definitions:

Affordable Housing Eligible for Accelerated Housing Review

Residential dwelling units that are permanently deed restricted to be affordable to qualifying households. **AMI ranges are tied to the initial qualification for sale or rent of the residential dwelling unit. Qualifying households are those** who earn less than one hundred twenty percent (120%) of the Area Median Income for renters, and less than two hundred percent (200%) of the Area Median Income for ownership, as determined annually by the Department of Housing and Urban Development (HUD) and adjusted for household sizes. Units that cost less than thirty percent (30%) of a qualifying household's gross monthly income are considered affordable. Costs include, but are not limited to, rent, mortgage payments, taxes, utilities, and insurance as applicable.

DRAFT

May 14, 2026 rev 4/24

May 7, 2026

San Miguel County Planning Commission
San Miguel County, Colorado

Re: Request to Deny Proposed Accelerated Housing Review / Fast Track Amendment

Dear Commissioners,

I strongly urge the Planning Commission to deny the proposed Accelerated Housing Review (“Fast Track”) Amendment.

What is most troubling about this proposal is not simply the substance of the amendment itself, but the manner in which it is being advanced despite the County’s own stakeholder process reaching the opposite conclusion!

San Miguel County created the Stakeholder Strategic Roundtable (“SSR”) specifically to provide informed, balanced, and community-based guidance regarding major Land Use Code reforms. The County assembled a remarkably diverse cross-section of stakeholders, including property owners, housing advocates, business interests, community representatives, and other participants with widely differing perspectives, for the express purpose of developing thoughtful, consensus-driven recommendations regarding housing policy and Land Use Code updates.

County materials repeatedly emphasized that this process would be collaborative, community-led, and consensus-oriented. The SSR was intended to serve as a sounding board for staff and consultants, evaluate proposed amendments, identify unintended consequences, and help develop broadly supported reforms before legislation advanced to the Planning Commission.

Yet after following this extensive public process and asking community members to dedicate substantial time and effort to the SSR as well as the public at large, the County staff is now advancing a Fast Track Amendment that lacks support from the SSR and community.

As reflected in recent SSR discussions and public correspondence, a supermajority of SSR participants opposed the amendment in its current form because it lacks fundamental guardrails, including:

- no cap on project size,
- insufficient procedural clarity,
- lack of coordination with the broader Land Use Code update,
- unresolved notice and due process concerns,
- and no meaningful limits to prevent large-scale projects from bypassing the normal review structure.

Pamela M Bennett

This raises a serious question: what was the purpose of creating the SSR if staff intends to proceed with major policy changes regardless of the consensus reached through that process?

The County cannot credibly describe the SSR as a collaborative stakeholder-driven effort while simultaneously disregarding its recommendations. Doing so undermines public trust, diminishes the substantial volunteer effort contributed by SSR participants, and calls into question whether the process was ever intended to meaningfully shape policy outcomes.

The Fast Track Amendment is precisely the type of proposal the SSR was created to evaluate comprehensively and holistically within the broader Land Use Code update. Instead, staff is advancing a piecemeal amendment before the larger code revisions are complete and before critical procedural, legal, and implementation issues have been resolved, why?

The County's own materials state that the Housing Code Update process was intended to balance housing goals with preservation of community character, infrastructure realities, procedural fairness, and community-supported reforms. Advancing this amendment over the objection of the SSR directly contradicts those stated goals.

If the County genuinely values public participation and stakeholder collaboration, then the recommendations of the SSR must carry meaningful weight. Otherwise, the process risks appearing performative rather than substantive.

For these reasons, I respectfully request that the Planning Commission deny the Accelerated Housing Review Amendment in its current form and direct staff to continue working through the broader SSR and Land Use Code update process before bringing forward additional amendments.

Thank you for your consideration,

Sincerely,

A handwritten signature in black ink, appearing to read "P. Bennett", with a horizontal line underneath.

Scott Bennett
San Miguel County Resident

To: San Miguel County Planning Commission

Re: Proposed Fast Track / Accelerated Housing Review Amendment

Dear Planning Commissioners,

I am writing to express concerns about the proposed Fast Track (Accelerated Housing Review) Amendment and to respectfully ask that it not be approved in its current form.

The biggest concern is that the amendment does not include any limits or “guardrails” on the size of projects eligible for fast-track review. As written, very large developments could qualify for this accelerated process as long as 50% of the units meet the affordability requirements.

There is also a lack of clarity about how the Fast Track process would work within the County’s existing Land Use Code (LUC). The current LUC outlines clear review procedures for different types of development projects, but it does not clearly explain what review process would apply to large multi-unit affordable housing developments under this amendment.

Because of this, important questions remain unanswered, including:

- Which review process would apply,
- What documents and studies would be required,
- What level of public notice and hearings would occur, and
- How the County would ensure a fair and consistent review process.

There are also concerns about public participation and due process. Some review procedures in the current code do not require public hearings, and the amendment does not clearly explain how neighboring property owners and community members would be notified or allowed to participate in decisions on large projects.

Finally, many members of the SSR process have spent significant time working on comprehensive updates to the Land Use Code that aim to support housing while also preserving community character. Approving this amendment separately, before the larger LUC update is completed, risks creating conflicts and inconsistencies within the code.

The issue is not whether affordable housing is important. It is. The concern is that this amendment moves forward without the clarity, coordination, and safeguards needed to ensure the process works fairly and effectively.

For these reasons, I respectfully encourage the Planning Commission to recommend denial of the amendment in its current form and allow the broader SSR process to continue developing a more complete and coordinated update to the Land Use Code, including any future fast-track housing provisions.

Best Regards,

A handwritten signature in blue ink, appearing to read 'Scott Bennett', with a long, sweeping horizontal line extending to the right.

Scott Bennett



May 7, 2026

To: San Miguel County Planning Commission
Re: Proposed Land Use Code Amendment - Accelerated Housing Review Fast Track

Dear Commissioners,

The Aldasoro Ranch Homeowners Company (HOC), is submitting public comment regarding the proposed Accelerated Housing Review Land Use Code Amendment.

At its core, this proposed amendment introduces a significant procedural shift in how housing applications are reviewed, prioritizing speed over the comprehensive and coordinated land use planning process that San Miguel County and citizens have long valued. Advancing a “fast track” process without appropriate guardrails risks undermining the broader Land Use Code update underway and may ultimately produce unintended and far-reaching consequences for our community.

One of the most critical issues raised over the past several years by a large number of citizens, and one that cannot be overlooked, is the absence of any meaningful limitation on the size or scale of projects in the East End of Telluride. This concern is not occurring in a vacuum. Approximately a year and a half ago, hundreds of community members voiced serious opposition to proposed changes to the East End Master Plan by including the Community Housing Zone District (CH Zone) provisions that allowed density up to 20 units per acre. In response, the Board of County Commissioners made the prudent decision to shelve that proposal with a commitment to revisit the issue and refocus on small-scale development.

To date, however, the County has not clearly defined what “small-scale” means. The current Fast Track Amendment presents a timely opportunity to do so. If the County is serious about honoring prior commitments to the community and maintaining alignment with public sentiment, it must establish clear, enforceable limits within this proposed amendment.

Without a clearly defined cap in the proposed Accelerated Housing Review Fast Track process, this amendment could apply to developments of virtually any magnitude, which is inconsistent with the County’s stated goal of balancing housing needs with preservation of community character. Reasonable guardrails are not only appropriate, but they are also essential to ensuring that this tool is used as intended.

Importantly, the County’s own Strategic Stakeholder Roundgroup (SSR), a body convened specifically to provide informed and balanced input on Land Use Code updates, has expressed clear opposition to the amendment as currently written. As reflected in the May 1, 2026 correspondence from citizen and SSR member Nick Farkouh, a supermajority of SSR members voted to recommend denial of the Fast Track Amendment due to the absence of adequate guardrails, particularly the lack of any cap on project size. This level of consensus from a diverse and engaged stakeholder group should carry significant weight in your deliberations and underscores the need for revision before adoption.



HOC Letter to Planning Commission
May 7, 2026
Page 2

Accordingly, the HOC strongly recommends that eligibility for Accelerated Housing Review be limited to projects of no more than ten (10) residential units for proposed developments geographically located in the East End of the County above Ilium Valley, where there is a well-documented lack of suitable land to accommodate high-density housing projects. In the East End area, smaller-scale development is not only more appropriate but is also consistent with existing land constraints, infrastructure limitations, and community character.

Conversely, other areas of the County that are better suited for higher-density development may warrant a different approach. A geographically nuanced policy would allow the County to more effectively balance housing production goals with real-world development constraints and community expectations.

Without clear limits both in project size and appropriate geographic application the proposed Fast Track Land Use Code Amendment risks becoming a tool that enables large-scale development without sufficient oversight, precisely the outcome that the community has previously rejected.

In closing, the HOC respectfully urges the Planning Commissioners to revise the amendment to include clear and enforceable guardrails, by setting a firm cap of no more than a 10-unit development in the East End above Ilium Valley to be eligible for the fast-track review.

This is a critical moment to ensure that housing policy advances in a way that is both responsive to community needs and consistent with the long-term vision for San Miguel County.

Thank you for your time, consideration, and continued service to our community.

Sincerely,

Shellie Duplan
Director of Operations



Kaye Simonson <kayes@sanmiguelcountyco.gov>

Land Use Code amendment

1 message

Virginia Lucarelli <virginialucarelli@gmail.com>
To: SMC Planning <planning@sanmiguelcountyco.gov>

Tue, May 5, 2026 at 10:47 AM

Dear Planning Commission,

Please listen to the SSR committee's recommendation with regard to fast tracking the Accelerated Housing Review LUC amendment for Prop 123 dollars of "up to \$45,000" and take your time to do this correctly.

Unfortunately we have seen what happens when our county rushes to conform with state standards in pursuit of the almighty grant dollars - often there are unanticipated consequences. The most memorable of which was the approval of the rezoning of Diamond Ridge which was pushed through so that you could get state funds for the acquisition of the property. The zoning was overturned and the grant money was never received and this property remains highly controversial.

San Miguel county is unique. Please take the time to fully consider this amendment and integrate it into our LUC with appropriate caps and guardrails.

Thank you.

Virginia Lucarelli
970-708-0753 cell

Draft Land Use Code Amendment – Natural Medicine

May 2026

*(Additions are shown as underlined. Deletions are shown in ~~strike-through~~. *** indicates text preceding and/or following the amended text that is not shown and is unchanged.)*

Section 5-31: Natural Medicine Businesses

5-3101 Purpose

This Section shall provide for the regulation of natural medicine businesses within the county for the purpose of protecting the health, safety and welfare of San Miguel County residents and guests.

Under the Natural Medicine Health Act of 2022, SB23-290, voters of the State of Colorado approved legislation to establish a regulated natural medicine access program. Within this program, the Colorado Department of Revenue Natural Medicine Division licenses and regulates natural medicine businesses, including healing centers, manufacturers, testing facilities, and their owners and employees.

The legislation allows for personal use of natural medicines, with certain restrictions. The legislation also provides that local jurisdictions may regulate the time, place, and manner of the operation of natural medicine businesses licensed by the State of Colorado, but may not ban or prohibit such businesses.

5-3102 Applicability

This Section applies to the proposed establishment of Natural Medicine businesses located in unincorporated areas of San Miguel County.

5-3103 Permit Required

A permit issued pursuant to this Section is required prior to the establishment of Natural Medicine businesses located in unincorporated areas of San Miguel County.

5-3104 Licensed Natural Medicine businesses permitted in certain zone districts

- A. Natural Medicine Cultivation Facilities, Natural Medicine Product Manufacturers, and Natural Medicine Testing Facilities licensed by the state are uses allowed by Administrative Review in the Low Intensity Industrial (I) Zone District in the Ilium Valley portion of the Lawson Hill PUD and Wright's Mesa Light Industrial (WMLI) Zone District.
- B. Natural Medicine Healing Centers licensed by the state is a use allowed by Administrative Review in "Business and Professional Offices" in the Low Intensity Industrial zone district of the Lawson Hill PUD, in the Placerville Commercial (PC)

zone district, and in “Medical Services and Medical Offices in the Mixed Use Development (MXD) Zone District.

- C. Natural Medicine businesses shall not be permitted as a home occupation in any zone district.
- D. A Natural Medicine Business may not operate until it is duly licensed by the State Licensing Authority and the use is approved by San Miguel County.

5-3105 Licensed Natural Medicine Use Standards

- A. No Natural Medicine Business shall operate within the unincorporated area of San Miguel County without compliance with all applicable Land Use Code standards.
- B. Natural Medicine Businesses shall be located within a building.
- C. All equipment must be stored inside the building or within an enclosed fenced area.
- D. Hours of operation shall be limited to 8:00 a.m. to 5:00 p.m.
- E. No Natural Medicine Business shall be established within one thousand (1,000) feet of a any public or private preschool or elementary, middle, junior high, or high school or licensed childcare facility from the nearest property line of the parcel. The distance shall be a direct line between the closest point of the business and the closest point on the neighboring lot or parcel upon which any Natural Medicine Business uses are located.
- F. All Natural Medicine Businesses shall not cause odors, smoke, heat, glare or light that is detectable to a person of normal senses beyond the property line of the property upon which the use is being conducted, or in an adjacent dwelling unit or public area.

5-3106 Definitions

As defined in this chapter, unless the context clearly requires otherwise, the following words and terms shall have the meanings set forth in this section. Other definitions not specifically enumerated in this section shall be as defined, as applicable, in the Colorado Natural Medicine Code, and the Colorado Natural Medicine Rules.

Administration Session

A supervised, legal session at a licensed healing center or approved location where a participant consumes and experiences the effects of regulated natural medicine (such as psilocybin) under the guidance of a licensed facilitator.

Colorado Natural Medicine Code

Article 50 of Title 44 of the Colorado Revised Statutes, as may be amended from time to time.

Colorado Natural Medicine Rules

Those rules governing state-licensed natural medicine businesses and state-licensed facilitators as set forth in the Colorado Code of Regulations, 1 CCR 213-1 and 4 CCR755-1, as may be amended from time to time.

Clinical Facilitator

An individual licensed by the Department of Regulatory Agencies (DORA) to prepare, supervise, and support participants during the consumption of natural medicines, such as psilocybin.

Healing Center

A state-licensed facility where authorized facilitators provide and supervise the use of regulated natural medicines (such as psilocybin) for participants.

Natural Medicine

Includes psilocybin/psilocyn, as well as, if approved for use by the state at a later time, each of the following: dimethyltryptamine; ibogaine; and mescaline. The definition does not include synthetic or synthetic analogs of these substances, nor does it include peyote (except ceremonial).

Natural Medicine Business

As defined by State Statute, “Natural Medicine Business” means any of the following businesses licensed pursuant to the Natural Medicine Code:

- i. A Natural Medicine Healing Center;
- ii. A Natural Medicine Cultivation Facility;
- iii. A Natural Medicine Products Manufacturer;
- iv. A Natural Medicine Testing Facility.

Natural Medicine Cultivation Facility

A facility licensed by the state licensing authority where regulated natural medicine is grown, harvested, and prepared in order to be transferred and distributed to either a healing center, facilitator, a natural medicine products manufacturer, or to another natural medicine cultivation facility.

Natural Medicine Products Manufacturer

A person licensed by the state licensing authority who manufactures regulated natural medicine products for transfer to a healing center, facilitator, or to another natural medicine products manufacturer.

Natural Medicine Services

A preparation session, administrative session, and a post-administration integration session.

Natural Medicine Testing Facility

A public or private laboratory licensed and approved by the Department of Revenue Division of Natural Medicine to perform testing and research on regulated natural medicine and regulated natural medicine products.

Participant

A person who is twenty-one (21) years of age or older who receives natural medicine services performed by or under the supervision of a facilitator.

Regulated Natural Medicine

Natural medicine that is cultivated, manufactured, tested, stored, distributed, transported, transferred, or dispensed pursuant to the natural medicine code.

State Licensing Authority

The executive director of the Colorado Department of Revenue or their designee.

Article 7. Definitions

Home Occupation

A non-retail service, business, occupation or trade conducted entirely within a residential building or accessory structure for gain or support by a resident of the dwelling, and no other, which:

- (1) Is clearly incidental and secondary to the residential use of the building;
- (2) Does not change the essential residential character of the use;
- (3) Employs no more than one (1) non-resident of the building;
- (4) Operates pursuant to a valid occupational license for the use held by the resident of the dwelling unit, if required;
- (5) Is confined to no more than fifty percent (50%) of the total floor area of the main level of the dwelling, or up to two thousand (2,000) sq. ft. of floor area, whichever is less;
- (6) Complies with all applicable provisions of Section 5-704 D.II.c regarding signs;
- (7) Does not sell any stock in trade, merchandise, supplies or products on the premises, except that such items may be sold if accessory to the non-retail home occupation use;
- (8) Does not store outside of the dwelling unit any equipment or materials used in the home occupation;
- (9) Does not utilize mechanical, electrical or other equipment or items that produce noise, electrical or magnetic interference, vibration, heat, glare, smoke, dust, odor or other nuisance outside the residential building or accessory structure;

(10) Provides off-street parking to accommodate the needs of the home occupation; and

(11) Does not include any of the following uses: antique shop, beauty parlor, medical clinic, mortuary, nursing home, restaurant, veterinary clinic or dance studio.

(12) Natural medicine businesses (cultivations, manufacturers, testing facility or healing center) shall not be permitted as a home occupation.

Office

A use where business, professional, or governmental services are made available to the public, including:

(1) Business Office - an office for use by persons such as realtors, travel, advertising or insurance agents and property managers providing both products and services, or the home office of a company that sells retail or wholesale products or provides professional services.

(2) Professional Office - an office for use by persons such as physicians, dentists, natural medicine healing centers, lawyers, architects, engineers, accountants and other professionals who primarily provide services rather than products.